

BOARD OF SUPERVISORS

MINUTES

JUNE 25, 2025

2 p.m. Work Session - Administration Building, Room 502

A video recording of this meeting may be viewed at
<https://www.chesterfield.gov/244/Agendas-and-Minutes>.

Supervisors in Attendance:

Mr. James A. Ingle, Jr., Chair

Dr. Mark S. Miller, Vice Chair

Ms. Jessica L. Schneider

Mr. James M. Holland

Mr. Kevin P. Carroll

Dr. Joseph P. Casey

County Administrator

Mr. Ingle called the meeting to order at 2 p.m.

1. Approval of Minutes

On motion of Mr. Carroll, seconded by Ms. Schneider, the Board approved the minutes of the May 28, 2025, Board of Supervisors meeting and the June 18, 2025, Powhite Parkway Public Information Meeting, as submitted.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.

Nays: None.

2. Requests to Postpone Agenda Items and Additions, Deletions or Changes in the Order of Presentation

There were no requests to postpone agenda items and additions, deletions or changes in the order of presentation.

3. Everyday Excellence - General Services

Director of General Services John Neal recognized Mark West, Michael Herring, Ed Humphries, Joann Cecil, Daniel Coates, Paul Redd, Rodolfo Vega, Austin Ball, Andrew Anderson, Adam Prather, Robert Watson, Bruce Perkinson, Cindy Loshkreff, Jason Somervell, Earl Kirby, Craig Willingham, Sam Hayes, and Pete Troxell, all of whom played a role in completing many in-house special construction projects for the county. Mr. Neal provided details of many projects the team has completed in-house, thereby saving time and money.

Board members congratulated the team for the recognition and expressed appreciation for their diligent service to the county.

4. Work Sessions

A. Environmental Stewardship Update

Deputy County Administrator Clay Bowles introduced Morris White with Virginia Cooperative Extension; Brianna Morring with James River Soil and Water Conservation District; Diaz Tompkins with the Farm Bureau, and Director of General Services John Neal, all of whom provided the Board with an update on environmental stewardship activities and initiatives throughout the county.

Discussion and questions ensued relative to the information provided during the presentation.

B. Local College Update by Brightpoint and Bryant and Stratton

Deputy County Administrator Dr. James Worsley introduced Bill Fiege with Brightpoint Community College and Beth Murphy with Bryant & Stratton College, both of whom provided the Board with a local college update.

Discussion and questions ensued relative to the information provided during the presentation.

C. Workforce Preparedness Update

Dr. Worsley introduced Chad Maclin, Chesterfield County Public Schools Director of Career and Technical Education (CTE) and CCPSOnline, and Katy Stokes, Coordinator of Work-Based Learning (WBL), both of whom provided the Board with an update on workforce preparedness in the county.

Discussion and questions ensued relative to the information provided during the presentation.

D. 2025 General Assembly Legislation

County Attorney Jeff Mincks provided the Board with an update on 2025 General Assembly legislation affecting the county.

The Board concurred with going forward with the recommendations outlined in Attachment B of the agenda item entitled "Staff Recommendations Summary Sheet".

E. Consent Agenda Highlights

Deputy County Administrator Matt Harris provided details of various consent agenda items on the evening agenda.

5. Reports

A. Reports on the Status of District Improvement Operating and Capital Funds, General Fund Unassigned Balance and Debt Policy Ratios, and Investments

The Board approved the Reports on the Status of District Improvement Operating and Capital Funds, General Fund Unassigned Balance and Debt Policy Ratios, and Investments.

6. Fifteen-Minute Citizen Comment Period on Unscheduled Matters

King Solomon Shepherd addressed the Board relative to a call for Americans to come together and stand up for one another.

7. Closed Session

- A. Closed Session Pursuant to 2.2-3711(A)(1), Code of Virginia, 1950, as Amended, Relating to the Performance of the Clerk to the Board

On motion of Dr. Miller, seconded by Mr. Carroll, the Board went into Closed Session Pursuant to 2.2-3711(A)(1), Code of Virginia, 1950, as Amended, Relating to the Performance of the Clerk to the Board.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

Reconvening:

On motion of Ms. Schneider, seconded by Dr. Miller, the Board adopted the following resolution:

WHEREAS, the Board of Supervisors has this day adjourned into Closed Session in accordance with a formal vote of the Board and in accordance with the provisions of the Virginia Freedom of Information Act; and

WHEREAS, the Virginia Freedom of Information Act effective July 1, 1989 provides for certification that such Closed Session was conducted in conformity with law.

NOW, THEREFORE BE IT RESOLVED, the Board of Supervisors does hereby certify that to the best of each member's knowledge, i) only public business matters lawfully exempted from open meeting requirements under the Freedom of Information Act were discussed in Closed Session to which this certification applies, and ii) only such business matters were identified in the motion by which the Closed Session was convened were heard, discussed or considered by the Board. No member dissents from this certification.

Ms. Schneider: Aye.
Mr. Holland: Aye.
Mr. Carroll: Aye.
Dr. Miller: Aye.
Mr. Ingle: Aye.

8. Recess for Dinner

On motion of Ms. Schneider, seconded by Mr. Holland, the Board recessed for dinner in Room 502.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

6 p.m. Evening Session - Public Meeting Room, 10001 Iron Bridge Road

Reconvening:

9. Invocation by the Honorable Jessica L. Schneider, Clover Hill District Supervisor

The Honorable Jessica L. Schneider, Clover Hill District Supervisor, gave the invocation.

10. Pledge of Allegiance Led by Matt Harris, Deputy County Administrator

Deputy County Administrator Matt Harris led the Pledge of Allegiance.

11. County Administration Update

The County Administration Update included the following:

- o Annual presentation of the Youth Advisory Board;
- o Announcement of Hermes and Public Relations Society of America (PRSA) awards received by Constituent and Media Services;
- o Announcement of the Government Finance Officers Association's Certificate of Achievement for Excellence in Financial Reporting awarded to the Accounting Department for the 44th consecutive year;
- o Announcement of the county having obtained a fourth AAA bond rating from Kroll Bond Rating Agency (KBRA); and
- o Announcement of a newly-created group of regional partners (Richmond, Hanover, Henrico and Chesterfield) who will collaborate on water topics such as availability, reliability, redundancy and quality.

12. Board Member Reports

Board members announced and provided details of several community meetings and county-related events they attended recently.

13. Resolutions and Special Recognitions

A. Resolution Recognizing 2025 Senior Volunteer Hall of Fame Inductees

Kimberly Graves, Aging and Disability Manager, introduced Robin Hoerber, Peter Plourd, and Wonnease Rhone, who were present to receive the recognition.

Mr. Ingle expressed appreciation for their many hours of dedicated service to the community.

On motion of Dr. Miller, seconded by Ms. Schneider, the Board adopted the following resolution:

WHEREAS, volunteering is a powerful force for the solution of human problems, and the creative use of human resources is essential to a healthy, productive and humane society; and

WHEREAS, our nation's heritage is based on citizen involvement and citizen participation, and volunteerism is of enormous benefit in building a better community and a better sense of one's own wellbeing; and

WHEREAS, the active involvement of citizens is needed today more than ever to combat growing human and social problems, to renew our belief that these problems can be solved and to strengthen our sense of community; and

WHEREAS, volunteering offers all, young and old, the opportunity to participate in the life of their community and to link their talents and resources to address some of the major issues facing our counties, such as education, hunger, the needs of youths, and the needs of our elderly; and

WHEREAS, agencies that benefit from volunteers should show their appreciation and recognition to the many volunteers who possess numerous skills and talents, which they generously and enthusiastically apply to a variety of community tasks, and encourage others to participate in programs as volunteers; and

WHEREAS, sixteen adults in Chesterfield County, aged 60-plus, have donated 108,000 hours of volunteer service since they have attained the age of 60 and were nominated for the Chesterfield Senior Volunteer Hall of Fame.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors, this 25th day of June 2025, publicly recognizes Robin Hoerber, Peter Plourd and Wonnease Rhone, who were selected among the sixteen and were inducted into the Chesterfield Senior Volunteer Hall of Fame on June 5, 2025, and expresses appreciation to these dedicated volunteers who contribute immeasurably to various programs throughout the area to strengthen our county and build bridges to the future.

AND, BE IT FURTHER RESOLVED that a copy of this resolution be presented to Robin Hoerber, Peter Plourd and Wonnease Rhone and this resolution be permanently recorded among the papers of this Board of Supervisors of Chesterfield County, Virginia.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

B. Resolution Recognizing Mr. Jon Lugbill, Sports Backers, Upon His Retirement

Sports, Visitation and Entertainment Executive Director J.C. Poma introduced Jon Lugbill, who was

present to receive the resolution.

On motion of Mr. Holland, seconded by Ms. Schneider, the Board adopted the following resolution:

WHEREAS, Mr. Jon Lugbill will be retiring from Sports Backers effective June 30, 2025; and

WHEREAS, Mr. Lugbill has served the residents and visitors of Chesterfield County with passion, humility, and distinguished pride in making the Richmond region a more active destination through large scale events and programs; and

WHEREAS, among many noteworthy achievements under Mr. Lugbill's leadership, Sports Backers was named the best sports commission in the country four times by the Sports Events and Tourism Association; and

WHEREAS, with exemplary leadership, Mr. Lugbill helped the Bike Walk RVA program receive Bicycling Magazine's People's Choice Advocacy Award and the Kids On the Move program receive the Youth Event of the Year by Running USA; and

WHEREAS, Mr. Lugbill's commitment to public service extends beyond events and programs, as is evident through his energetic passion to advocate for a healthier and more active Richmond region; and

WHEREAS, the Chesterfield County Board of Supervisors recognizes and sincerely appreciates the thirty-one years of dedication that Mr. Lugbill has devoted to Chesterfield County and the Richmond region.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors, this 25th day of June 2025, publicly recognizes the outstanding contributions of Mr. Jon Lugbill and extends appreciation, on behalf of its members and the citizens of Chesterfield County, congratulations upon his retirement, and best wishes for a long, happy, and healthy retirement.

AND, BE IT FURTHER RESOLVED that a copy of this resolution be presented to Mr. Lugbill and that this resolution be permanently recorded among the papers of the Board of Supervisors of Chesterfield County, Virginia.

Board members expressed appreciation for the remarkable efforts to get people moving throughout the county and the Richmond region.

Mr. Lugbill stated it has been a privilege to work with the Chesterfield team and a joy to help Chesterfield residents get more active and healthy.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

- C. Recognizing 2024-2025 Future Community Leader
Certificate Program Recipient

Director of Community Engagement and Resources Kimberly Conley stated the Future Community Leaders Certificate program provides Chesterfield County high school students with the opportunity to learn about their local government, interact with government officials, and engage in volunteerism to support the community. She then recognized and presented a certificate to recipient Gabrielle Jones.

14. New Business

- A. Performance Grant Agreement with Bellwood Crossing LLC for Liberty Gardens Apartments Project

Deputy County Administrator Jesse Smith provided the Board with details of the Performance Grant Agreement under the Route 1 Incentive Policy with Bellwood Crossing LLC for the Liberty Gardens Apartments Project.

On motion of Ms. Schneider, seconded by Dr. Miller, the Board approved a performance grant agreement with Bellwood Crossing LLC for the Liberty Gardens Apartment project.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

- B. Approval of a Fixed Tax Rate Agreement with Project Skye (Skyward)

Deputy Director of Economic Development Jake Elder introduced the item for approval of a fixed tax rate agreement with Project Skye, also known as Skyward.

Discussion and questions ensued relative to the information provided during the presentation.

Board members explained their thought processes when considering whether to approve a fixed-rate tax agreement.

Deputy County Administrator Matt Harris was called upon to answer additional questions relative to Meadowville Technology Park.

Additional remarks by Board members ensued.

On motion of Mr. Holland, seconded by Mr. Carroll, the Board approved a tax rate agreement with Project Skye, also known as Skyward.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

- C. Approval of a Fixed Tax Rate Agreement with Project Loch (Aeris)

Mr. Elder introduced the item for approval of a fixed tax rate agreement with Project Loch, also known as Aeris.

In response to Mr. Carroll's question, County Attorney Jeff Mincks confirmed that this agreement is the same as the one for Project Skye.

On motion of Dr. Miller, seconded by Mr. Holland, the Board approved a tax rate agreement with Project Loch, also known as Aeris.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

D. Appointments

1. Economic Development Authority

On motion of Mr. Carroll, seconded by Dr. Miller, the Board nominated/reappointed John Cogbill, Clover Hill district, to serve as an at-large representative on the Economic Development Authority, whose term is effective July 1, 2025, and will expire June 30, 2029.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

2. Health Center Commission (HCC) for the County of Chesterfield

On motion of Mr. Holland, seconded by Dr. Miller, the Board nominated/reappointed Sarah Snead, Town of Ashland, and nominated/appointed Matthew Clark, Midlothian district, to serve as at-large representatives on the Health Center Commission (HCC) for the County of Chesterfield, whose terms are effective July 1, 2025, and will expire June 30, 2029.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

3. Community Criminal Justice Board

On motion of Mr. Carroll, seconded by Dr. Miller, the Board nominated/reappointed My'chael Jefferson-Reese, Public Defender, to serve as the defense attorney representative and William E. Feasenmyer and Christopher Harris to serve as citizen representatives for the City of Colonial Heights on the Community Criminal Justice Board, whose terms are effective July 1, 2025, and will expire June 30, 2027.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

4. Community Policy and Management Team

On motion of Mr. Holland, seconded by Ms. Schneider, the Board nominated/appointed Jaimey Honea, Midlothian district, to serve as the parent representative on the Community Policy and Management Team, whose term is effective July 1, 2025, and will expire June 30, 2028.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

5. Social Services Board

On motion of Mr. Holland, seconded by Ms. Schneider, the Board nominated/reappointed Angie Grant, Matoaca district, and James Payne, Jr., Midlothian district, to serve as at-large representatives on the Social Services Board, whose terms are effective July 1, 2025, and will expire June 30, 2029.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

E. Consent Items (14.E.1. - 14.E.12.)

1. Adoption of Resolutions

- a. Resolution Recognizing Mr. Donald Birdsong, Jr, Department of General Services, Radio Shop Division, Upon His Retirement

On motion of Mr. Carroll, seconded by Dr. Miller, the Board adopted the following resolution:

WHEREAS, Mr. Donald Birdsong, Jr. will retire from the Chesterfield County Department of General Services Radio Shop Division on July 1, 2025; and

WHEREAS, Mr. Birdsong began his career in Chesterfield County Government on July 22, 1985, as a Communications and Electronics Specialist; and

WHEREAS, in June 1987, Mr. Birdsong's position was reclassified to a Sr. Communications and Electronics Specialist; and

WHEREAS, in February 1990, Mr. Birdsong's position was reclassified to a Communications and Electronics Systems Analyst; and

WHEREAS, Mr. Birdsong had a wealth of knowledge which was instrumental in helping to manage many projects; and

WHEREAS, Mr. Birdsong had a strong work ethic and attention to details, and he was able to prioritize work with little direction or guidance; and

WHEREAS, Mr. Birdsong was able to "think on his feet" and make decisions and he could be relied on for quick answers to technical questions; and

WHEREAS, Mr. Birdsong's experience, having learned new technology and managing to repair some of the most sophisticated equipment on the market, made him a valuable player on the team; and

WHEREAS, there are numerous examples of how Mr.

Birdsong's knowledge and expertise were a benefit to the county; and

WHEREAS, in June 1993, a lightning strike took out part of the emergency radio system and cellular phone, and Mr. Birdsong repaired the equipment within a few hours, thereby saving time and money because of his in-house expertise; and

WHEREAS, in 2023, Mr. Birdsong was recognized for providing emergency assistance to a neighboring county by engaging our public safety crews with another county's frequencies which was a significant improvement in terms of safety and operational effectiveness; and

WHEREAS, Mr. Birdsong has been described as pleasant, dedicated, hardworking and totally reliable, and his performance was well above normal standards or expectations; and

WHEREAS, throughout his career of close to 40 years, Mr. Birdsong has always exceeded expectations; and

WHEREAS, Mr. Birdsong was a valued member of the team, performed his duties with dedication and self-motivation, and he will be missed by his co-workers and customers.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors recognizes the outstanding contributions of Mr. Donald L. Birdsong, Jr., expresses the appreciation of all citizens for his service to Chesterfield County, and extends appreciation for his dedicated service to the County, congratulations upon his retirement, and best wishes for a long and happy retirement.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

b. Resolution Recognizing Ms. Lisa H. Coker,
Mental Health Support Services, Upon her
Retirement

On motion of Mr. Carroll, seconded by Dr. Miller, the Board adopted the following resolution:

WHEREAS, Ms. Lisa H. Coker retired from Chesterfield County Mental Health Support Services on June 1, 2025, after providing over 28 years of service; and

WHEREAS, Ms. Coker was hired as a Case Manager for the Adult Substance Use Services program on July 15, 1996; and

WHEREAS, Ms. Coker provided case management support for pregnant and postpartum women affected by substance use; and

WHEREAS, Ms. Coker acted as the liaison for Chesterfield County's Opiate Addiction and Rewards for Recovery program, which assisted uninsured and

underinsured individuals in accessing life-saving medications; and

WHEREAS, Ms. Coker contributed to the development and implementation of the curriculum for the Gaining Effective Methadone Skills (GEMS) group, the Be Well Group, and the Recovery Group, all of which focused on a holistic approach to treatment and recovery; and

WHEREAS, Ms. Coker completed certification in the National Acupuncture Detoxification Association (NADA) protocol and provided Acuwellness services to program participants; and

WHEREAS, Ms. Coker in 2017 pioneered the implementation of billable case management services for the Adult Substance Use Services program; and

WHEREAS, Ms. Coker played a vital role in establishing and maintaining the MHSS Memorial Garden which serves as a space for recognizing clients and staff who have passed away and provides a peaceful place for quiet reflection; and

WHEREAS, Ms. Coker created and maintained a comprehensive list of local resources to better assist individuals with their needs; and

WHEREAS, Ms. Coker was a strong advocate for those she served, using her extensive knowledge of substance use and mental health treatment to ensure access to the necessary treatments and resources to improve the quality of life of individuals and families of Chesterfield County.

NOW, THEREFORE, BE IT RESOLVED that the Chesterfield County Board of Supervisors recognizes the outstanding contributions of Ms. Lisa H. Coker and extends appreciation, on behalf of its members and the citizens of Chesterfield County, congratulations upon her retirement, and best wishes for a long, happy, and healthy retirement.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

c. Resolution Confirming Official Intent to
Reimburse Capital Expenditures with
Proceeds of a Future Borrowing

On motion of Mr. Carroll, seconded by Dr. Miller, the Board adopted the following resolution:

RESOLUTION OF OFFICIAL INTENT TO REIMBURSE
EXPENDITURES WITH PROCEEDS OF A BORROWING

WHEREAS, the County of Chesterfield, Virginia (the "County"), intends to undertake certain capital improvement projects for the benefit of the County, including but not limited to (i) acquisition of real property and interests, (ii) construction renovation, expansion, or major maintenance of public buildings and facilities, (iii) transportation and mobility

improvements (collectively, the "Projects"); and

WHEREAS, plans for the Projects have advanced, and the County expects to advance its own funds to pay expenditures related to the Projects (the "Expenditures") and to receive reimbursement for such Expenditures from proceeds of bonds or other debt obligations to be issued by or on behalf of the County (collectively, the "Bonds");

NOW, THEREFORE, BE IT RESOLVED BY THE BOARD OF SUPERVISORS OF THE COUNTY OF CHESTERFIELD, VIRGINIA:

1. The County intends to issue, or request a conduit issuer to issue, Bonds of one or more series to pay the costs of the Projects in a principal amount not currently expected to exceed \$50,000,000.

2. The County intends that the proceeds of the Bonds be used to reimburse the County for Expenditures made on or after the date that is no more than 60 days prior to the date hereof. The County reasonably expects on the date hereof that it will reimburse the Expenditures with the proceeds of the Bonds.

3. Each Expenditure was or will be, unless otherwise approved by bond counsel, either (a) of a type properly chargeable to a capital account under general federal income tax principles (determined in each case as of the date of the Expenditure), (b) a cost of issuance with respect to the Bonds, (c) a nonrecurring item that is not customarily payable from current revenues or (d) a grant to a party that is not related to or an agent of the County so long as such grant does not impose any obligation or condition (directly or indirectly) to repay any amount to or for the benefit of the County.

4. The County intends to make a reimbursement allocation, which is a written allocation by the County that evidences the County's use of proceeds of the Bonds to reimburse an Expenditure, no later than 18 months after the later of the date on which the Expenditure is paid or the related Projects are placed in service or abandoned, but in no event more than three years after the date on which the Expenditure is paid. The County recognizes that exceptions are available for certain "preliminary expenditures," costs of issuance, certain de minimis amounts, expenditures by "small issuers" (based on the year of issuance and not the year of expenditure) and expenditures for construction of at least five years.

5. The County intends that the adoption of this Resolution confirms the "official intent" within the meaning of Treasury Regulations Section 1.150-2 promulgated under the Internal Revenue Code of 1986, as amended.

6. This Resolution shall take effect immediately upon its passage.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

d. Resolution Authorizing the Issuance, Sale,
and Award of General Obligation Bonds for
Public Improvements and Refunding Purposes

On motion of Mr. Carroll, seconded by Dr. Miller, the Board adopted the following resolution authorizing the issuance, sale, and award of (i) General Obligation Public Improvement Bonds in the maximum aggregate principal amount of \$75,000,000 and (ii) General Obligation Refunding Bonds in the maximum aggregate principal amount of \$60,000,000 to finance capital projects and refund certain outstanding bond series:

RESOLUTION PROVIDING FOR THE ISSUANCE, SALE AND AWARD OF GENERAL OBLIGATION PUBLIC IMPROVEMENT BONDS OF THE COUNTY OF CHESTERFIELD, VIRGINIA, IN THE MAXIMUM AGGREGATE PRINCIPAL AMOUNT OF \$75,000,000, HERETOFORE AUTHORIZED, PROVIDING FOR THE ISSUANCE, SALE AND AWARD OF GENERAL OBLIGATION REFUNDING BONDS OF THE COUNTY OF CHESTERFIELD, VIRGINIA, IN THE MAXIMUM AGGREGATE PRINCIPAL AMOUNT OF \$60,000,000, PROVIDING FOR THE FORM, DETAILS AND PAYMENT OF SUCH BONDS, AND PROVIDING FOR THE REFUNDING OF CERTAIN OUTSTANDING GENERAL OBLIGATION BONDS OF THE COUNTY

WHEREAS, by resolution adopted on June 29, 2022 (the "Authorizing Resolution"), the Board of Supervisors (the "Board") of the County of Chesterfield, Virginia (the "County") (a) authorized the issuance of general obligation capital improvement bonds in the maximum principal amount of \$540,000,000 to finance various capital improvement projects for (i) public school system purposes, (ii) public safety purposes, (iii) public library purposes and (iv) parks and recreation purposes (collectively, the "Projects"), subject to the approval of the voters at a special election, and (b) requested the Circuit Court of the County of Chesterfield to order a special election on the issuance of such bonds;

WHEREAS, pursuant to a special election held on November 8, 2022 (the "Election"), the qualified voters of the County approved the issuance of general obligation bonds of the County in the maximum principal amount of \$540,000,000 to finance the Projects;

WHEREAS, the County has previously issued \$194,800,000 principal amount of such general obligation bonds and \$345,200,000 principal amount remains authorized but unissued;

WHEREAS, the Board desires to (a) issue up to \$75,000,000 principal amount of such general obligation bonds (as further described herein, the "New Money Bonds") authorized by the Authorizing Resolution and approved by the qualified voters of the County pursuant to the Election and (b) use the

proceeds thereof to (i) finance a portion of the costs of the Projects related to the public school system, and (ii) pay related costs of issuance; and

WHEREAS, the County has previously issued its General Obligation Public Improvement Bonds, Series 2015A, in the original principal amount of \$34,690,000 (the "Series 2015A Bonds");

WHEREAS, the County has previously issued its General Obligation Public Improvement Refunding Bonds, Series 2015B, in the original principal amount of \$57,420,000 (the "Series 2015B Bonds");

WHEREAS, the County has previously issued its General Obligation Public Improvement and Refunding Bonds, Series 2016, in the original principal amount of \$86,480,000 (the "Series 2016 Bonds");

WHEREAS, the County may effect debt service savings by issuing its general obligation refunding bonds (the "Refunding Bonds") to refund all or a portion of the outstanding maturities of the Series 2015A Bonds, the Series 2015B Bonds and the Series 2016 Bonds (such refunded series and maturities or portions thereof shall be referred to herein as the "Refunded Bonds"); and

WHEREAS, the County administration, in consultation with Davenport & Company LLC, acting as the County's financial advisor (the "Financial Advisor"), has recommended that the County sell the New Money Bonds and the Refunding Bonds (together, the "Bonds"), in one or more series through one or more of the following methods: (a) a public offering through a competitive sale or (b) a public offering through a negotiated underwriting;

BE IT RESOLVED BY THE BOARD OF SUPERVISORS OF THE COUNTY OF CHESTERFIELD, VIRGINIA:

1. Issuance of Bonds. Pursuant to the Constitution and statutes of the Commonwealth of Virginia, including the Public Finance Act of 1991, and in accordance with the authorization of the Authorizing Resolution and the approval of the qualified voters pursuant to the Election, the Board hereby provides for the issuance and sale of the New Money Bonds in an aggregate principal amount not to exceed \$75,000,000 to finance a portion of the costs of the Projects and to pay related costs of issuance. Pursuant to the Constitution and statutes of the Commonwealth of Virginia, including the Public Finance Act of 1991, the Board further hereby provides for the issuance and sale of the Refunding Bonds in an aggregate principal amount not to exceed \$60,000,000 to finance the refunding of the Refunded Bonds and to pay related costs of issuance.

2. Bond Details.

(a) The New Money Bonds shall be designated "General Obligation Public Improvement Bonds, Series

2025A" or such other designation as the County Administrator (such term as used herein to include the County Administrator and the Deputy County Administrator for Finance and Administration) may determine, shall be in registered form, shall be dated such date as may be determined by the County Administrator, shall be in denominations of \$5,000 and integral multiples thereof and shall be numbered RA-1 upward. Subject to the provisions and limitations of this Resolution, the Board authorizes the County Administrator to undertake the issuance and sale of the New Money Bonds and to determine the final pricing terms of the New Money Bonds as he shall deem to be in the best interests of the County; provided, however, that the New Money Bonds shall (i) be issued in an aggregate principal amount not exceeding the limit set forth in Section 1, (ii) have a "true" or "Canadian" interest cost not to exceed 6.00% (taking into account any original issue discount or premium), (iii) be sold at a price not less than 95.0% of the original aggregate principal amount thereof (excluding any original issue discount or premium), and (iv) mature, or be subject to mandatory sinking fund redemption in annual installments, in years ending no later than December 31, 2054.

(b) The Refunding Bonds shall be designated "General Obligation Refunding Bonds, Series 2025B" or such other designation as the County Administrator may determine, shall be in registered form, shall be dated such date as may be determined by the County Administrator, shall be in denominations of \$5,000 and integral multiples thereof and shall be numbered RB-1 upward. Subject to the provisions and limitations of this Resolution, the Board authorizes the County Administrator to undertake the issuance and sale of the Refunding Bonds and to determine the final pricing terms of the Refunding Bonds as he shall deem to be in the best interests of the County; provided, however, that the Refunding Bonds shall (i) be issued in an aggregate principal amount not exceeding the limit set forth in Section 1, (ii) have a "true" or "Canadian" interest cost not to exceed 5.00% (taking into account any original issue discount or premium), (iii) be sold at a price not less than 95.0% of the original aggregate principal amount thereof (excluding any original issue discount or premium), and (iv) mature, or be subject to mandatory sinking fund redemption in annual installments, in years ending no later than December 31, 2036. In addition, the Refunding Bonds shall produce positive net present value debt service savings to the County.

(c) Principal of the Bonds shall be payable annually on dates determined by the County Administrator. Each Bond shall bear interest from its date at such rate as shall be determined at the time of sale, calculated on the basis of a 360-day year of twelve 30-day months, payable semiannually on dates determined by the County Administrator. Principal and premium, if any, shall

be payable to the registered owners upon surrender of Bonds as they become due at the office of the Registrar (as hereinafter defined). Interest shall be payable by check or draft mailed to the registered owners at their addresses as they appear on the registration books kept by the Registrar on a date prior to each interest payment date that shall be determined by the County Administrator (the "Record Date"); provided, however, that at the request of the registered owner of the Bonds, payment may be made by wire transfer pursuant to the most recent wire instructions received by the Registrar from such registered owner. If any payment date with respect to the Bonds is not a Business Day (as hereinafter defined), such payment shall be made on the next succeeding Business Day with the same effect as if made on the stated payment date and no additional interest shall accrue. "Business Day" shall mean a day on which banking business is transacted, but not including a Saturday, Sunday or legal holiday, or any other day on which banking institutions are authorized by law to close in the Commonwealth of Virginia. Principal, premium, if any, and interest shall be payable in lawful money of the United States of America.

(d) Initially, one Bond certificate for each maturity of each series of the Bonds shall be issued to and registered in the name of The Depository Trust Company ("DTC") or its nominee. The County has heretofore entered into a Letter of Representations relating to a book-entry system to be maintained by DTC with respect to the Bonds. "Securities Depository" shall mean DTC or any other securities depository for the Bonds appointed pursuant to Subsection 2(e).

(e) In the event that (i) the Securities Depository determines not to continue to act as the securities depository for the Bonds by giving notice to the Registrar, and the County discharges the Securities Depository of its responsibilities with respect to the Bonds, or (ii) the County in its sole discretion determines (A) that beneficial owners of the Bonds shall be able to obtain certificated Bonds or (B) to select a new Securities Depository, then its Deputy County Administrator for Finance and Administration or Director of Budget and Management, either of whom may act, shall, at the direction of the County, attempt to locate another qualified securities depository to serve as Securities Depository and authenticate and deliver certificated Bonds to the new Securities Depository or its nominee, or authenticate and deliver certificated Bonds to the beneficial owners or to the Securities Depository participants on behalf of beneficial owners substantially in the form provided for in Section 5; provided, however, that such form shall provide for interest on the Bonds to be payable (X) from the date of the Bonds if they are authenticated prior to the first interest payment date or (Y) otherwise from the interest payment date that is or immediately precedes the date on which the Bonds are

authenticated (unless payment of interest thereon is in default, in which case interest on such Bonds shall be payable from the date to which interest has been paid). In delivering certificated Bonds, the Deputy County Administrator for Finance and Administration or Director of Budget and Management, either of whom may act, shall be entitled to rely on the records of the Securities Depository as to the beneficial owners or the records of the Securities Depository participants acting on behalf of beneficial owners. Such certificated Bonds will then be registrable, transferable and exchangeable as set forth in Section 7.

(f) So long as there is a Securities Depository for the Bonds, (i) it or its nominee shall be the registered owner of the Bonds, (ii) notwithstanding anything to the contrary in this Resolution, determinations of persons entitled to payment of principal, premium, if any, and interest, transfers of ownership and exchanges and receipt of notices shall be the responsibility of the Securities Depository and shall be effected pursuant to rules and procedures established by such Securities Depository, (iii) the Registrar and the County shall not be responsible or liable for maintaining, supervising or reviewing the records maintained by the Securities Depository, its participants or persons acting through such participants, (iv) references in this Resolution to registered owners of the Bonds shall mean such Securities Depository or its nominee and shall not mean the beneficial owners of the Bonds and (v) in the event of any inconsistency between the provisions of this Resolution and the provisions of the above-referenced Letter of Representations such provisions of the Letter of Representations, except to the extent set forth in this paragraph and Subsection 2(e), shall control.

3. Redemption Provisions.

(a) Subject to the limitations contained herein, the County Administrator is authorized to determine the redemption provisions of the Bonds, including provisions for optional, extraordinary and mandatory sinking fund redemption.

(b) The Bonds may be subject to redemption prior to maturity at the option of the County at any time on or after the dates, if any, determined by the County Administrator, in whole or in part, at redemption price(s) that the County Administrator determines to be in the best interests of the County based on financial market conditions, together with any interest accrued to the date fixed for redemption. Such redemption price terms may include traditional redemption prices not to exceed 102% of the principal amount to be redeemed as well as "make whole" redemption prices.

(c) Any Bonds sold as term bonds may be subject to mandatory sinking fund redemption upon

terms determined by the County Administrator.

(d) If less than all of the Bonds of a series are called for redemption, the maturities of the series of Bonds (or principal portions thereof) to be redeemed shall be selected by the Deputy County Administrator for Finance and Administration or Director of Budget and Management, either of whom may act, in such manner as such officer may determine to be in the best interests of the County. If less than all of the Bonds of a particular maturity of a series are called for redemption, the Bonds (or portions thereof) within such maturity of a series to be redeemed shall be selected by the Securities Depository pursuant to its rules and procedures or, if the book-entry system is discontinued, shall be selected by the Registrar by lot in such manner as the Registrar in its discretion may determine. In either case, (i) the portion of any Bond to be redeemed shall be in the principal amount of \$5,000 or some integral multiple thereof and (ii) in selecting Bonds for redemption, each Bond shall be considered as representing that number of Bonds that is obtained by dividing the principal amount of such Bond by \$5,000. The County shall cause notice of the call for redemption identifying the Bonds or portions thereof to be redeemed to be sent by facsimile or electronic transmission, registered or certified mail or overnight express delivery, not less than 30 nor more than 60 days prior to the date fixed for redemption, to the registered owner(s) of the Bonds. The County shall not be responsible for giving notice of redemption to anyone other than DTC or another qualified securities depository then serving or its nominee unless no qualified securities depository is the registered owner(s) of the Bonds. If no qualified securities depository is the registered owner of the Bonds, notice of redemption shall be mailed to the registered owners of the Bonds. If a portion of a Bond is called for redemption, a new Bond in principal amount equal to the unredeemed portion thereof will be issued to the registered owner upon the surrender thereof.

(e) In the case of an optional redemption, the notice may state that (i) it is conditioned upon the deposit of moneys, in an amount equal to the amount necessary to effect the redemption, no later than the date fixed for redemption or (ii) the County retains the right to rescind such notice on or prior to the date fixed for redemption (in either case, a "Conditional Redemption"), and such notice and optional redemption shall be of no effect if such moneys are not so deposited or if the notice is rescinded as described herein. Any Conditional Redemption may be rescinded at any time. The County shall give prompt notice of such rescission to the affected bondholders. Any Bonds subject to Conditional Redemption where redemption has been rescinded shall remain outstanding, and the rescission shall not constitute an event of default. Further, in the case of a Conditional Redemption, the failure of the County to make funds

available on or before the date fixed for redemption shall not constitute an event of default, and the County shall give immediate notice to all organizations registered with the Securities and Exchange Commission (the "SEC") as securities depositories or the affected bondholders that the redemption did not occur and that the Bonds called for redemption and not so paid remain outstanding.

4. Execution and Authentication. The Bonds shall be signed by the manual or facsimile signature of the Chair or Vice Chair of the Board, and the Board's seal shall be affixed thereto, or a facsimile thereof printed thereon, and shall be attested by the manual or facsimile signature of the Clerk or Deputy Clerk of the Board; provided, however, that no Bond signed by facsimile signatures shall be valid until it has been authenticated by the manual signature of the Registrar or, if a bank has been appointed registrar pursuant to Section 7, an authorized officer or employee of the Registrar and the date of authentication noted thereon.

5. Bond Form. The Bonds shall be in substantially the form of Exhibit A attached hereto, with such completions, omissions, insertions and changes not inconsistent with this Resolution as may be approved by the officers signing the Bonds, whose approval shall be evidenced conclusively by their execution and delivery of the Bonds.

6. Pledge of Full Faith and Credit. The full faith and credit of the County are irrevocably pledged for the payment of principal of and premium, if any, and interest on the Bonds. Unless other funds are lawfully available and appropriated for timely payment of the Bonds, the Board shall levy and collect an annual ad valorem tax, over and above all other taxes authorized or limited by law and without limitation as to rate or amount, on all locally taxable property in the County sufficient to pay when due the principal of and premium, if any, and interest on the Bonds.

7. Registration, Transfer and Owners of Bonds.

(a) The County Treasurer is hereby appointed paying agent and registrar for the Bonds (the "Registrar"). The County Administrator is authorized, on behalf of the County, to appoint a qualified bank or trust company as successor paying agent and registrar for the Bonds if at any time the County Administrator determines such appointment to be in the best interests of the County. The Registrar shall maintain registration books for the registration of the Bonds and transfers thereof. Upon presentation and surrender of any Bonds to the Registrar, or its corporate trust office if the Registrar is a bank or trust company, together with an assignment duly executed by the registered owner or the owner's duly authorized attorney or legal representative in such form as shall be satisfactory to the Registrar, the County shall

execute, and the Registrar shall authenticate, if required by Section 4, and deliver in exchange, a new Bond or Bonds of the same series and having an equal aggregate principal amount, in authorized denominations, of the same form and maturity, bearing interest at the same rate, and registered in the name(s) as requested by the then registered owner or the owner's duly authorized attorney or legal representative. Any such exchange shall be at the expense of the County, except that the Registrar may charge the person requesting such exchange the amount of any tax or other governmental charge required to be paid with respect thereto.

(b) The Registrar shall treat the registered owner as the person exclusively entitled to payment of principal, premium, if any, and interest and the exercise of all other rights and powers of the owner, except that interest payments shall be made to the person shown as owner on the registration books on the applicable Record Date.

8. Sale of Bonds. The Board approves the following terms of the sale of the Bonds:

(a) The Bonds shall be sold through a competitive sale or a negotiated sale, as the County Administrator, in collaboration with the Financial Advisor, determines to be in the best interests of the County.

(b) If the County Administrator determines that any Bonds shall be sold by competitive sale, the County Administrator is authorized to receive bids for such Bonds and award such Bonds to the bidder(s) providing the lowest "true" or "Canadian" interest cost, subject to the limitations set forth in Sections 1 and 2. Following a competitive sale, the County Administrator shall file a certificate with the Clerk of the Board setting forth the final terms of the Bonds. The actions of the County Administrator in selling the Bonds by competitive sale shall be conclusive, and no further action with respect to the sale and issuance of the Bonds shall be necessary on the part of the Board.

(c) If any Bonds are sold by competitive sale, the County Administrator, in collaboration with the Financial Advisor, is authorized and directed to take all proper steps to advertise such Bonds for sale in accordance with the terms and conditions as shall be provided in the notice of sale relating to the Bonds. The County Administrator is further authorized to cause to be prepared and disseminated a notice of sale of the Bonds in such form and containing such terms and conditions as the County Administrator may deem advisable, subject to the provisions of this Resolution.

(d) If the County Administrator determines that any Bonds shall be sold by negotiated sale, the County Administrator is authorized, in collaboration with the Financial Advisor, to choose one or more

investment banks or firms to serve as underwriter(s) for such Bonds and to execute and deliver to the underwriter(s) a bond purchase agreement (the "Bond Purchase Agreement") in a form to be approved by the County Administrator in consultation with the County Attorney and the County's bond counsel. The execution of the Bond Purchase Agreement by the County Administrator shall constitute conclusive evidence of his approval thereof. Following a negotiated sale, the County Administrator shall file a copy of the Bond Purchase Agreement with the records of the Board. The actions of the County Administrator in selling the Bonds by negotiated sale to the underwriter(s) shall be conclusive, and no further action with respect to the sale and issuance of the Bonds shall be necessary on the part of the Board.

9. Approval of Preparation and Execution of Official Statement.

(a) The County Administrator and other appropriate officials and employees of the County are hereby authorized and directed to prepare and distribute, or cause to be prepared and distributed, to prospective purchasers of the Bonds a Preliminary Official Statement (the "Preliminary Official Statement") describing the Bonds and the County in a form consistent with the provisions of this Resolution. All actions taken by the County Administrator and such other officials and employees of the County with respect to the preparation and distribution of the Preliminary Official Statement are hereby ratified and confirmed.

(b) The County Administrator and other appropriate officials and employees of the County are hereby authorized and directed to prepare, or cause to be prepared, a final Official Statement (the "Official Statement"), which shall be in substantially the form of the Preliminary Official Statement with such completions, omissions, insertions and changes as are necessary to complete the Official Statement and deem it final for purposes of Rule 15c-12 (the "Rule") of the SEC.

(c) The County Administrator is hereby authorized and directed to execute and deliver to the underwriter(s) of the Bonds the final Official Statement. The County shall arrange for the delivery to the underwriter(s) of the Bonds of a reasonable number of printed copies of the final Official Statement, within seven business days after the Bonds have been sold, for delivery to each potential investor requesting a copy of the Official Statement and to each person to whom the underwriter(s) initially sells Bonds.

10. Official Statement. The draft Preliminary Official Statement describing the Bonds, copies of which have been made available to the Board prior to this meeting, is hereby approved as the form of the Preliminary Official Statement by which the Bonds may

be offered for sale to the public; provided that the County Administrator, in collaboration with the Financial Advisor, may make such completions, omissions, insertions and changes in the Preliminary Official Statement not inconsistent with this Resolution as the County Administrator may consider to be in the best interests of the County. After the Bonds have been sold, the County Administrator, in collaboration with the Financial Advisor, shall make such completions, omissions, insertions and changes in the Preliminary Official Statement not inconsistent with this Resolution as are necessary or desirable to complete it as a final Official Statement. In addition, the County shall arrange for the delivery to the underwriter(s) of the Bonds of a reasonable number of printed copies of the final Official Statement, within seven business days after the Bonds have been sold, for delivery to each potential investor requesting a copy of the Official Statement and to each person to whom the underwriter(s) initially sells Bonds.

11. Official Statement Deemed Final. The County Administrator is authorized, on behalf of the County, to deem the Preliminary Official Statement and the Official Statement in final form, each to be final as of its date within the meaning of the Rule, except for the omission from the Preliminary Official Statement of certain pricing and other information permitted to be omitted pursuant to the Rule. The distribution of the Preliminary Official Statement and the execution and delivery of the Official Statement in final form shall be conclusive evidence that each has been deemed final as of its date by the County, except for the omission in the Preliminary Official Statement of such pricing and other information permitted to be omitted pursuant to the Rule.

12. Preparation and Delivery of Bonds. After the Bonds have been awarded, the Chair or Vice Chair and the Clerk or Deputy Clerk of the Board are authorized and directed to take all proper steps to have the Bonds prepared and executed in accordance with their terms and to deliver the Bonds to the underwriter(s) thereof upon payment therefor.

13. Redemption of Refunded Bonds. The County Administrator is authorized and directed to determine which maturities of the Series 2015A Bonds, the Series 2015B Bonds and the Series 2016 Bonds, if any, shall constitute the Refunded Bonds. The County Administrator shall direct that notices of redemption be given to the registered owners of the Refunded Bonds in accordance with the terms of the Refunded Bonds.

14. Escrow Deposit Agreement. The County Administrator and the County Treasurer, either of whom may act, are authorized and directed to execute an escrow deposit agreement in connection with the Refunded Bonds (the "Escrow Agreement") between the County and an escrow agent to be appointed by the

County Administrator (the "Escrow Agent"). The Escrow Agreement shall be in the form approved by the County Administrator, in collaboration with the County Attorney and the County's bond counsel. The execution and delivery of the Escrow Agreement by any of such authorized signatories shall constitute conclusive evidence of his or her approval of the Escrow Agreement. The Escrow Agreement shall provide for the irrevocable deposit of a portion of the Refunding Bond proceeds (the "Refunding Portion") in an escrow fund that shall be sufficient, when invested in noncallable obligations of, or unconditionally guaranteed by, the United States Government (the "Government Obligations"), (i) to pay when due the interest on the Refunded Bonds to the first respective dates on which they may be redeemed at the option of the County and (ii) to pay upon the earlier of maturity or redemption the principal of the Refunded Bonds; provided, however, that such Refunding Portion shall be invested in such manner that none of the Bonds will be "arbitrage bonds" within the meaning of Section 148 of the Internal Revenue Code of 1986, as amended, and regulations issued pursuant thereto (the "Code"). Such officers shall provide for the deposit of the remaining proceeds of the Refunding Bonds in a special account to be used to pay the costs incurred in refunding the Refunded Bonds and the costs of issuing the Refunding Bonds. The Escrow Agent is authorized to execute, on behalf of the County, an initial and final subscription form for the purchase of the Government Obligations, if and as necessary. The County Administrator and the County Treasurer are further authorized and directed to take all such further action as may be necessary or desirable in connection with the payment and refunding of the Refunded Bonds.

15. Arbitrage Covenants. The County covenants that it shall not take or omit to take any action the taking or omission of which will cause any of the Bonds to be "arbitrage bonds" (within the meaning of Section 148 of the Code), or otherwise cause interest on any of the Bonds to be includable in the gross income for federal income tax purposes of the registered owners thereof under existing law. Without limiting the generality of the foregoing, the County shall comply with any provision of law that may require the County at any time to rebate to the United States any part of the earnings derived from the investment of the gross proceeds of the Bonds, unless the County receives an opinion of nationally recognized bond counsel that such compliance is not required to prevent interest on any of the Bonds from being includable in the gross income for federal income tax purposes of the registered owners thereof under existing law. The Escrow Agent is authorized and directed to execute initial and final subscription forms for the purchase of the Government Obligations and such other contracts and agreements necessary to provide for the defeasance of the Refunded Bonds as are approved by the County Administrator, in collaboration with the County's bond counsel.

16. Non-Arbitrage Certificate and Elections. Such officers of the County as may be requested by the County's bond counsel are authorized and directed to execute an appropriate certificate setting forth (a) the expected uses and investment of the proceeds of the Bonds in order to show that such expected uses and investment will not violate the provisions of Section 148 of the Code and (b) any elections such officers deem desirable regarding rebate of earnings to the United States for purposes of complying with Section 148 of the Code. Such certificate shall be prepared in consultation with the County's bond counsel, and such elections shall be made after consultation with bond counsel.

17. Limitation on Private Use. The County covenants that it shall not permit the proceeds of the Bonds or the facilities financed or refinanced with the proceeds of the Bonds to be used in any manner that would result in (a) 5% or more of such proceeds or facilities being used in a trade or business carried on by any person other than a governmental unit, as provided in Section 141(b) of the Code, (b) 5% or more of such proceeds or facilities being used with respect to any output facility (other than a facility for the furnishing of water), within the meaning of Section 141(b)(4) of the Code, or (c) 5% or more of such proceeds being used directly or indirectly to make or finance loans to any persons other than a governmental unit, as provided in Section 141(c) of the Code; provided, however, that if the County receives an opinion of nationally recognized bond counsel that any such covenants need not be complied with to prevent the interest on any of the Bonds from being includable in the gross income for federal income tax purposes of the registered owners thereof under existing law, the County need not comply with such covenants.

18. Continuing Disclosure Agreement. The Chair and Vice Chair of the Board and the County Administrator, any of whom may act, are hereby authorized and directed to execute a continuing disclosure agreement (the "Continuing Disclosure Agreement") setting forth the reports and notices to be filed by the County and containing such covenants as may be necessary to assist the underwriter(s) of the Bonds in complying with the provisions of the Rule promulgated by the SEC. The Continuing Disclosure Agreement shall be substantially in the form of the County's prior continuing disclosure agreements, which is hereby approved for purposes of the Bonds; provided that the County Administrator, in collaboration with the Financial Advisor, may make such changes in the Continuing Disclosure Agreement not inconsistent with this Resolution or the Rule, as the County Administrator may determine to be in the best interests of the County. The execution thereof by such officers shall constitute conclusive evidence of their approval of any such completions, omissions, insertions and changes.

19. Deposit of New Money Bond Proceeds. The County Treasurer is hereby authorized and directed to provide for delivery of the proceeds of the New Money Bonds to or at the direction of the County in such manner as necessary to pay costs of the Projects and related costs of issuance.

20. SNAP Investment Authorization. The County has previously received and reviewed the Information Statement describing the State Non-Arbitrage Program of the Commonwealth of Virginia ("SNAP") and the Contract Creating the State Non-Arbitrage Program Pool (the "Contract"), and the Board hereby authorizes the County Treasurer in her discretion to use SNAP in connection with the investment of the portion of the proceeds of the Bonds used to finance the Project. The Board acknowledges that the Treasury Board of the Commonwealth of Virginia is not, and shall not be, in any way liable to the County in connection with SNAP, except as otherwise provided in the Contract.

21. Reimbursement of Expenditures. The County intends that the proceeds of the Bonds may be used to reimburse expenditures for the Projects made prior to the date hereof. As such, the County intends that the adoption of this Resolution confirms the "official intent" within the meaning of Treasury Regulations Section 1.150-2 promulgated under the Code.

22. Other Actions. All other actions of officers of the County and the Board in conformity with the purposes and intent of this Resolution and in furtherance of the issuance and sale of the Bonds and the financing of the Projects are hereby ratified, approved and confirmed. The officers of the County are hereby authorized and directed to execute and deliver all certificates and instruments and to take all such further action as may be considered necessary or desirable in connection with the issuance, sale and delivery of the Bonds and the financing of the Projects.

23. Repeal of Conflicting Resolutions. All resolutions or parts of resolutions in conflict herewith are repealed.

24. Effective Date. This Resolution shall take effect immediately.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

2. Real Property Requests

- a. Request to Quitclaim a Portion of a Water Easement Across the Property Owned by Industrial Lease IV Propco LLC

On motion of Mr. Carroll, seconded by Dr. Miller, the Board authorized the Chairman of the Board of

Supervisors and the County Administrator to execute a quitclaim deed to quitclaim a portion of a water easement across the property owned by Industrial Lease IV Propco LLC.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

3. Set Public Hearing for July 23, 2025

- a. To Consider Appropriation and Transfer of Funds and Grant Authorization to Proceed with Transportation Projects

On motion of Mr. Carroll, seconded by Dr. Miller, the Board set July 23, 2025, as the date to hold a public hearing to consider the appropriation and transfer of funds and grant authorization to proceed with transportation projects.

And, further, the Board authorized the County Administrator to enter into VDOT agreements/contracts, permits/mitigation agreements and surety agreements acceptable to the County Attorney; authorized the County Administrator to proceed with engineering, right-of-way acquisitions, including the advertisement of eminent domain public hearings if necessary, and to accept the conveyance of right of way and easements that are acquired; authorized the Chair of the Board of Supervisors and County Administrator to execute easement agreements for relocation of utilities; and authorized the Procurement Director to proceed with advertisement of a construction contract for the Courthouse Road Extension to Salem Church Road project.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

- b. To Consider the Quitclaim of a Portion of Right of Way Known as Meadowville Road

On motion of Mr. Carroll, seconded by Dr. Miller, the Board set July 23, 2025, as the date to hold a public hearing to consider the quitclaim of a portion of right of way known as Meadowville Road.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

- c. To Consider a Revision to Chapter 6 of the County Code Related to Business Licenses

On motion of Mr. Carroll, seconded by Dr. Miller, the Board set July 23, 2025, as the date to hold a public hearing to consider a revision to Chapter 6 of the County Code related to the gross receipts thresholds for business license taxation.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

- d. To Consider Request to Quitclaim Rights in a Prescriptive Easement Known as Mount Hermon Road

On motion of Mr. Carroll, seconded by Dr. Miller, the Board set July 23, 2025, as the date to hold a public hearing to consider the quitclaim of rights in a prescriptive easement known as Mount Hermon Road.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

4. Acceptance and Appropriation of Grant Funds from the Virginia Department of Aviation and Award Construction Contract and Potential Change Orders for Pavement Rehabilitation of the E and F T-Hangar Taxilanes at the Chesterfield County Airport

On motion of Mr. Carroll, seconded by Dr. Miller, the Board accepted and appropriated grant funds from the Virginia Department of Aviation and authorized the Director of Procurement to award a construction contract to Branscome and approve potential change orders up to the project budget for pavement rehabilitation of the taxilanes for T-hangars E and F at Chesterfield County Airport.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

5. Acceptance of State Roads

On motion of Mr. Carroll, seconded by Dr. Miller, the Board adopted the following resolution:

WHEREAS, the street described below is shown on a plat recorded in the Clerk's Office of the Circuit Court of Chesterfield County; and

WHEREAS, the Resident Engineer for the Virginia Department of Transportation has advised this Board the street meets the requirements established by the Subdivision Street Requirements of the Virginia Department of Transportation.

NOW, THEREFORE, BE IT RESOLVED, that this Board requests the Virginia Department of Transportation to add the street described below to the secondary system of state highways, pursuant to Sections 33.2-705 and 33.2-334, Code of Virginia, and the Department's Subdivision Street Requirements.

AND, BE IT FURTHER RESOLVED, that this Board guarantees a clear and unrestricted right-of-way, as described, and any necessary easements for cuts, fills and drainage.

AND, BE IT FURTHER RESOLVED, that a certified copy of this resolution be forwarded to the Resident Engineer for the Virginia Department of Transportation.

Project / Subdivision: Ashton Park Drive Extension
Type Change to the Secondary System of State

Highways: Addition

Reason for Change: New Street

Street Name and/or Route Number

Ashton Park Drive, State Route Number 932

From: 0.63 miles northeast of Ruffin Mill Road,
(Route 746)

To: The cul-de-sac, a distance of 0.14 miles

Recordation Reference: Plat Book 276, Page 40

Right of Way width (feet) = 70

And, further, the Board adopted the following
resolution:

WHEREAS, the streets described below are shown on a
plat recorded in the Clerk's Office of the Circuit
Court of Chesterfield County; and

WHEREAS, the Resident Engineer for the Virginia
Department of Transportation has advised this Board
the streets meet the requirements established by the
Subdivision Street Requirements of the Virginia
Department of Transportation.

NOW, THEREFORE, BE IT RESOLVED, that this Board
requests the Virginia Department of Transportation to
add the streets described below to the secondary
system of state highways, pursuant to Sections 33.2-
705 and 33.2-334, Code of Virginia, and the
Department's Subdivision Street Requirements.

AND, BE IT FURTHER RESOLVED, that this Board
guarantees a clear and unrestricted right-of-way, as
described, and any necessary easements for cuts,
fills and drainage.

AND, BE IT FURTHER RESOLVED, that a certified copy of
this resolution be forwarded to the Resident Engineer
for the Virginia Department of Transportation.

**Project / Subdivision: Traditions of America at
Chesterfield Section 1**

Type Change to the Secondary System of State

Highways: Additions

Reason for Change: New Streets

Street Name and/or Route Number

American Way, State Route Number 8617

From: Ironbridge Boulevard, (Route 4880)

To: Valor Lane, (Route 8618), a distance of 0.07
miles

Recordation Reference: Plat Book 299, Page 68

Right of Way width (feet) = 50

Valor Lane, State Route Number 8618

From: American Way, (Route 8617)

To: 0.03 miles south of American Way, (Route 8617),
a distance of 0.03 miles

Recordation Reference: Plat Book 299, Page 68

Right of Way width (feet) = 50

Valor Lane, State Route Number 8618

From: Resolution Point, (Route 8619)

To: Courage Trail, (Route 8620), a distance of 0.07 miles
Recordation Reference: Plat Book 299, Page 68
Right of Way width (feet) = 50

Valor Lane, State Route Number 8618

From: American Way, (Route 8617)
To: Resolution Point, (Route 8619), a distance of 0.03 miles
Recordation Reference: Plat Book 299, Page 68
Right of Way width (feet) = 50

Resolution Point, State Route Number 8619

From: Valor Lane, (Route 8618)
To: The cul-de-sac, a distance of 0.09 miles
Recordation Reference: Plat Book 299, Page 68
Right of Way width (feet) = 50

Courage Trail, State Route Number 8620

From: Valor Lane, (Route 8618)
To: 0.21 miles southeast of Valor Lane, (Route 8618), a distance of 0.21 miles
Recordation Reference: Plat Book 299, Page 68
Right of Way width (feet) = 50

Courage Trail, State Route Number 8620

From: Valor Lane, (Route 8618)
To: The cul-de-sac, a distance of 0.03 miles
Recordation Reference: Plat Book 299, Page 68
Right of Way width (feet) = 50

And, further, the Board adopted the following resolution:

WHEREAS, the streets described below are shown on a plat recorded in the Clerk's Office of the Circuit Court of Chesterfield County; and

WHEREAS, the Resident Engineer for the Virginia Department of Transportation has advised this Board the streets meet the requirements established by the Subdivision Street Requirements of the Virginia Department of Transportation.

NOW, THEREFORE, BE IT RESOLVED, that this Board requests the Virginia Department of Transportation to add the streets described below to the secondary system of state highways, pursuant to Sections 33.2-705 and 33.2-334, Code of Virginia, and the Department's Subdivision Street Requirements.

AND, BE IT FURTHER RESOLVED, that this Board guarantees a clear and unrestricted right-of-way, as described, and any necessary easements for cuts, fills and drainage.

AND, BE IT FURTHER RESOLVED, that a certified copy of this resolution be forwarded to the Resident Engineer for the Virginia Department of Transportation.

Project / Subdivision: Harpers Mill Southwest -
Section 5
Type Change to the Secondary System of State

Highways: Additions

Reason for Change: New Streets

Street Name and/or Route Number

Glen Royal Drive, State Route Number 8101

From: Saxsawn Lane, (Route 8648)

To: 0.01 miles south of Saxsawn Lane, (Route 8648),
a distance of 0.01 miles

Recordation Reference: Plat Book 290, Page 70

Right of Way width (feet) = 55

Copplestone Road, State Route Number 8643

From: Otterdale Road, (Route 667)

To: Cambian Lane, (Route 8644), a distance of 0.09
miles

Recordation Reference: Plat Book 290, Page 70

Right of Way width (feet) = 55

Cambian Lane, State Route Number 8644

From: Cambian Court, (Route 8646)

To: Saxsawn Lane, (Route 8648), a distance of 0.09
miles

Recordation Reference: Plat Book 290, Page 70

Right of Way width (feet) = 55

Cambian Lane, State Route Number 8644

From: Cambian Place, (Route 8645)

To: Cambian Court, (Route 8646), a distance of 0.06
miles

Recordation Reference: Plat Book 290, Page 70

Right of Way width (feet) = 55

Cambian Lane, State Route Number 8644

From: Copplestone Road, (Route 8643)

To: Cambian Place, (Route 8645), a distance of 0.05
miles

Recordation Reference: Plat Book 290, Page 70

Right of Way width (feet) = 55

Cambian Lane, State Route Number 8644

From: Copplestone Road, (Route 8643)

To: The cul-de-sac, a distance of 0.05 miles

Recordation Reference: Plat Book 290, Page 70

Right of Way width (feet) = 55

Cambian Place, State Route Number 8645

From: Cambian Lane, (Route 8644)

To: The cul-de-sac, a distance of 0.06 miles

Recordation Reference: Plat Book 290, Page 70

Right of Way width (feet) = 40

Cambian Court, State Route Number 8646

From: Cambian Lane, (Route 8644)

To: The cul-de-sac, a distance of 0.02 miles

Recordation Reference: Plat Book 290, Page 70

Right of Way width (feet) = 40

Cambian Mews, State Route Number 8647

From: Cambian Lane, (Route 8644)

To: The cul-de-sac, a distance of 0.06 miles

Recordation Reference: Plat Book 290, Page 70

Right of Way width (feet) = 40

Saxsawn Lane, State Route Number 8648

From: Glen Royal Drive, (Route 8101)
To: 0.02 miles south of Glen Royal Drive, (Route 8101), a distance of 0.02 miles
Recordation Reference: Plat Book 290, Page 70
Right of Way width (feet) = 55

Saxsawn Lane, State Route Number 8648

From: Cambian Lane, (Route 8644)
To: The cul-de sac, a distance of 0.14 miles
Recordation Reference: Plat Book 290, Page 70
Right of Way width (feet) = 40

Saxsawn Lane, State Route Number 8648

From: Cambian Lane, (Route 8644)
To: Glen Royal Drive, (Route 8101), a distance of 0.16 miles
Recordation Reference: Plat Book 290, Page 70
Right of Way width (feet) = 55

And, further, the Board adopted the following resolution:

WHEREAS, the streets described below are shown on a plat recorded in the Clerk's Office of the Circuit Court of Chesterfield County; and

WHEREAS, the Resident Engineer for the Virginia Department of Transportation has advised this Board the streets meet the requirements established by the Subdivision Street Requirements of the Virginia Department of Transportation.

NOW, THEREFORE, BE IT RESOLVED, that this Board requests the Virginia Department of Transportation to add the streets described below to the secondary system of state highways, pursuant to Sections 33.2-705 and 33.2-334, Code of Virginia, and the Department's Subdivision Street Requirements.

AND, BE IT FURTHER RESOLVED, that this Board guarantees a clear and unrestricted right-of-way, as described, and any necessary easements for cuts, fills and drainage.

AND, BE IT FURTHER RESOLVED, that a certified copy of this resolution be forwarded to the Resident Engineer for the Virginia Department of Transportation.

Project / Subdivision: Lake Margaret Section 7
Type Change to the Secondary System of State
Highways: Additions
Reason for Change: New Streets

Street Name and/or Route Number

Abercrombie Drive, State Route Number 8580

From: 0.01 miles west of Alsandair Drive, (Route 8578)
To: Abercrombie Place, (Route 8651), a distance of 0.12 miles
Recordation Reference: Plat Book 310, Page 93
Right of Way width (feet) = 50

Abercrombie Drive, State Route Number 8580

From: Abercrombie Court, (Route 8649)
To: 0.01 miles south of McKibben Drive, (Route 8257), a distance of 0.14 miles
Recordation Reference: Plat Book 310, Page 93
Right of Way width (feet) = 50

Abercrombie Drive, State Route Number 8580

From: Abercrombie Place, (Route 8651)
To: Thornford Terrace, (Route 8650), a distance of 0.16 miles
Recordation Reference: Plat Book 310, Page 93
Right of Way width (feet) = 50

Abercrombie Drive, State Route Number 8580

From: Thornford Terrace, (Route 8650)
To: Abercrombie Court, (Route 8649), a distance of 0.13 miles
Recordation Reference: Plat Book 310, Page 93
Right of Way width (feet) = 50

Abercrombie Court, State Route Number 8649

From: Abercrombie Drive, (Route 8580)
To: The cul-de-sac, a distance of 0.11 miles
Recordation Reference: Plat Book 310, Page 93
Right of Way width (feet) = 50

Thornford Terrace, State Route Number 8650

From: Abercrombie Drive, (Route 8580)
To: The cul-de-sac, a distance of 0.21 miles
Recordation Reference: Plat Book 310, Page 93
Right of Way width (feet) = 50

Abercrombie Place, State Route Number 8651

From: Abercrombie Drive, (Route 8580)
To: The cul-de-sac, a distance of 0.30 miles
Recordation Reference: Plat Book 310, Page 93
Right of Way width (feet) = 50

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

6. Appropriation of Funds and Authorization to Award a Construction Contract for the Fall Line Trail: Route 1 (Marina Drive - Elliham Avenue) Project

On motion of Mr. Carroll, seconded by Dr. Miller, the Board took the following actions for the Fall Line Trail: Route 1 (Marina Drive - Elliham Avenue) project:

1. Appropriated \$974,757 in anticipated VDOT reimbursements as follows: Route 1 (Marina Drive - Merriewood Road), \$211,419; Route 1 (Merriewood Road - Elliham Avenue), \$547,024; Route 1 at Marina Drive, \$216,314;
2. Transferred \$782,799 in funds from the General Road Account as follows: Route 1 (Marina Drive - Merriewood Road), \$284,808; Route 1 (Merriewood Road - Elliham Avenue), \$443,913; Route 1 at Marina Drive, \$54,078; and

3. Authorized the Director of Procurement to award a construction contract, upon authorization from VDOT, to Messer Contracting, LLC in the amount of \$5,581,710.25 and to execute all necessary change orders up to the full amount budgeted for the project.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

7. Approval and Appropriation of FY2026 Opioid Direct Settlement Funding of Chesterfield Veteran Treatment Docket (VTD) Expansion

On motion of Mr. Carroll, seconded by Dr. Miller, the Board approved and appropriated the proposed FY2026 Opioid Direct Settlement funding of Chesterfield Veteran Docket (VTD) Expansion for \$290,500.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

8. Approval of Addendum to the Local Government Agreement (LGA) with Virginia Department of Health for Health Department Consolidation

On motion of Mr. Carroll, seconded by Dr. Miller, the Board approved an addendum to the Local Government Agreement (LGA) with the City of Colonial Heights for Health Department Consolidation.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

9. Approval of FY2025 Year-End Adjustments and Reserve Requests

On motion of Mr. Carroll, seconded by Dr. Miller, the Board adopted FY2025 year-end revenue and expenditure adjustments for the County as follows:

1. Authorized the County Administrator to assign to a revenue stabilization reserve all unspent, or otherwise unreserved, FY2025 appropriations that are in excess of the items detailed in the schedules attached to the agenda item;

2. Appropriated revenues and expenditures for specific programs as well as authorize reallocations among General Fund departments and related funds and make adjustments to revenues and expenditures as outlined on County - Schedule A attached to the agenda item;

3. Appropriated revenues and expenditures and authorize other adjustments for specific programs, projects, and non-General Fund departments as outlined on County - Schedule B attached to the agenda item;

4. Authorized the County Administrator to assign and reappropriate various revenues and unspent expenditures contingent upon positive results of

operations as determined by the County's financial audit, as outlined on County - Schedule C attached to the agenda item, and reserve all remaining funds for potential reappropriation during FY2026; additional requests to commit remaining funds will be brought to the Board of Supervisors following the financial audit; and

5. Authorized a \$16.1 million contribution to the Unassigned Fund Balance to ensure adequate balances within the policy guidelines prior to June 30, 2025.

And, further, the Board adopted FY2025 year-end revenue and expenditure adjustments for CCPS as follows:

1. Approved the revenue adjustments and appropriation changes outlined in CCPS - Schedule A attached to the agenda item;

2. Approved the reserve requirements/requests as shown in CCPS - Schedule B attached to the agenda item;

3. Approved the reserve requests for FY2025-budgeted activities continuing into FY2026 as shown in CCPS - Schedule C attached to the agenda item; and

4. Requested that any remaining ending balance based on the final FY2025 audit be reserved for Future School Needs in the general fund.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

10. Approval of Proposed FY2026 Budget Amendments

On motion of Mr. Carroll, seconded by Dr. Miller, the Board appropriated up to \$800,000 and approved proposed amendments to the FY2026 Budget as follows:

1. Authorized the addition of six positions within the Commonwealth's Attorney's Office based on allocations in the FY2026 state budget; and

2. Authorized the addition of one Deputy Clerk position in the Circuit Court Clerk's Office, funded by the Compensation Board effective July 1, 2025.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

11. Award of Construction Contract for Proctors Creek WWTP Influent Pump Station Screen Replacement

On motion of Mr. Carroll, seconded by Dr. Miller, the Board authorized the Director of Procurement to award the construction contract to MEB General Contractors, Inc., in the amount of \$1,944,000 and execute all necessary change orders up to the full amount budgeted for the Proctors Creek WWTP Influent Pump Station Screen Replacement.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

12. Award of Contract and Potential Change Orders
for Tennis Court Renovations at James River,
Matoaca, and Thomas Dale High Schools

On motion of Mr. Carroll, seconded by Dr. Miller, the Board authorized the Director of Procurement to award a construction contract in the amount of \$956,133.00 to River City Tennis, LLC, the lowest responsive and responsible bidder, and approve all necessary change orders, up to the amount budgeted, for tennis court renovations at James River, Matoaca, and Thomas Dale High Schools.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

15. Fifteen-Minute Citizen Comment Period on Unscheduled Matters

Peppy Jones expressed concerns relative to illegal signs throughout the county.

Thomas Kierl expressed concerns relative to the Peanut property and transparency and made several requests relative to the Peanut property.

Carl Schwendeman addressed the Board relative to the Chesterfield mega site and a section of Tidewater and Western railroad bed that runs through the property.

16. Deferred Items from Previous Meetings

There were no deferred items from previous meetings.

17. Zoning Requests

A. 23SN0132 - Whitten Brothers Site Expansion - Clover Hill

In Clover Hill Magisterial District, Whitten Brothers Site Expansion is a request to rezone from General Business (C-5) and Light Industrial (I-1) to General Business (C-5) with conditional use planned development for exceptions to ordinance requirements, and amendment of zoning district map on 10.32 acres known as 900 Johnston Willis Drive, 10701 Midlothian Turnpike, and 10745 Midlothian Turnpike. Density will be controlled by zoning conditions or ordinance standards. The Comprehensive Plan suggests the property is appropriate for Community Business and General Business uses. Tax ID 745-708-6563, 745-709-6011 and 3600.

Ms. Wilson introduced Case 23SN0132. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

Carl Schwendeman made a request for sidewalks to be

constructed along Route 60 and Johnston-Willis Drive.

There being no one else to speak to the issue, the public hearing was closed.

Ms. Schneider made a motion, seconded by Mr. Holland, for the Board to approve Case 23SN0132, subject to the conditions in the staff report.

Discussion and questions ensued relative to Mr. Schwendeman's request.

Mr. Ingle called for a vote on Ms. Schneider's motion, seconded by Mr. Holland, for the Board to approve Case 23SN0132, subject to the following conditions:

Proffered Conditions

The proffered conditions are stated as follows:

1. Landscaping and Vehicle Display areas (as detailed on Exhibit A) of the properties subject to the Proposed Rezoning will substantially conform to the **EXHIBIT A, Landscape Plan, Whitten Mazda Addition, dated June 19, 2024**. The vehicle display areas shall be limited to those illustrated on Exhibit A and shall not be located closer than five (5) feet from the ultimate right-of-way of Midlothian Turnpike. (P)
2. That existing freestanding sign with the text "WE BUY CARS" inscribed on the viewing panel, which exists on the property commonly known as 10745 Midlothian Turnpike, Richmond (Chesterfield County), Virginia 23236 and having the County Tax Identification No. 745-709-3600-00000, and identified on **Exhibit B**, will be demolished and removed within three (3) years following the date the Proposed Rezoning is approved. (P)
3. That existing freestanding sign that currently maintains no text or display on its viewing panels, and which exists on the property commonly known as 900 Johnston Willis Drive, Richmond (Chesterfield County), Virginia 23236 and having the County Tax Identification No. 745-709-6011-00000, and identified on **Exhibit C**, will be demolished and removed within sixty (60) days following the date the Proposed Rezoning is approved. (P)
4. That certain freestanding sign with the text "CHRYSLER, DOGE, JEEP RAM" inscribed on its viewing panels, and which exists on the property commonly known as 10701 Midlothian Turnpike, Richmond (Chesterfield County), Virginia 23236 and having the County Tax Identification No. 745-709-6011-00000, and identified on **Exhibit D**, may remain onsite in its existing size (approximately twenty-five (25) feet in height and seventy-five (75) square feet, in its current location or relocated elsewhere on site in accordance with applicable setbacks. (P)

5. That certain freestanding sign with the text "MAZDA" inscribed on its viewing panels, and which exists on the property commonly known as 10745 Midlothian Turnpike, Richmond (Chesterfield County), Virginia 23236 and having the County Tax Identification No. 745-709-3600-00000, identified on **Exhibit E**, may remain onsite in its existing location or relocated elsewhere on site in accordance with applicable setbacks. (P)

Additionally, the following item is a staff note of the Applicant's agreement with the Board of Supervisors:

1. The applicant's representative indicated he would speak with his client, the owner of the property, regarding the Board's request that sidewalks along the property's frontage be considered as part of the site plan and expansion project associated with the subject request.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

B. 24SN1190 - Haley Ford Body Shop Parking Lot - Bermuda

In Bermuda Magisterial District, Haley Ford Body Shop Parking Lot is a request for conditional use planned development to permit exceptions to ordinance requirements and amendment of zoning district map in the General Business (C-5) District on 1.68 acres known as 9020 Pams Avenue. The Comprehensive Plan suggests the property is appropriate for Regional Mixed use. Tax ID 794-671-1448.

Ms. Wilson introduced Case 24SN1190. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Mr. Ingle, seconded by Mr. Carroll, the Board approved Case 24SN1190, subject to the following conditions:

Proffered Conditions

1. Master Plan. The Textual Statement, dated 30 April 2025, shall be considered the Master Plan. (P)

2. Preliminary Site Plan. The Property shall be developed as generally depicted on the Preliminary Site Plan, dated 30 October 2024, prepared by Dean E. Hawkins, ASLA and attached hereto as "Exhibit A". (P)

3. Connection to Public Utilities. Public Water and Wastewater shall be used. Any associated easements for these utilities shall be dedicated in locations acceptable to the Utilities Department to accommodate the planned or future extension of the public water and wastewater systems. Such easement(s)

shall be dedicated prior to site plan approval. (U)

4. Dedication. Prior to final site plan approval or within sixty (60) days from a written request by the Transportation Department, whichever occurs first, thirty (30') feet of right-of-way along the west side of Pams Avenue (State Route 1626), measured from the centerline of that part of the road immediately adjacent to the Property, shall be dedicated, free and unrestricted, to and for the benefit of Chesterfield County. (T)

5. Landscaping. Landscaping shall be provided to adhere to the following standards:

a. Within the Front Yard Setback along Pams Avenue (State Route 1656), Perimeter Landscape "J" shall be provided. In addition, a line a Masonry Columns, 5' high, located at a spacing of thirty (30') feet on center and connected with Ornamental Fencing, four (4') high, as is generally shown on the Preliminary Site Plan ("Exhibit A"). All landscaping required and detailed on "Exhibit A" shall be completed (installed) within thirty (30) days of project completion or bonded and completed at the following planting season.

b. Within the Side Yard Setbacks, the Masonry Columns and Ornamental Fencing, as described in a. above, shall be located at the corners of the Front Yard Setback and extended down each side yard for thirty (30') feet. In addition to the above, a six (6') high Screening Fence shall be located, as generally shown on the Preliminary Site Plan ("Exhibit A"), along the two side yards and along each side yard up to and connecting to the existing rear building.

c. Within the Rear Yard, a six (6') foot high Screening Fence shall be constructed as generally shown on the Preliminary Site Plan. (P)

6. Exterior Lighting. Exterior Lighting, where installed, shall be full cut-off, pole mounted, minimum 70 CRI rated luminaires to illuminate the new and existing parking areas with a minimum maintained illumination level of 1.0 foot-candles (fc), as measured at grade. Light poles shall not be placed within twenty (20') feet of any large maturing shade trees. (P)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

C. 24SN1266 - Bellmeade Rezoning & Exceptions - Bermuda

In Bermuda Magisterial District, Bellmeade Rezoning & Exceptions is a request rezone from Residential (R-7) and Light Industrial (I-1) to Residential Townhouse (R-TH) District plus conditional use planned development to permit exceptions to ordinance requirements and amendment of zoning district map on 31 parcels totaling 42.87 acres. The property borders

the southwest side of Interstate 95 for approximately 3,100 feet and is bounded on the north by Wonderview Drive and bounded to the south by Proctors Creek, with proposed connections to Pinehurst Street and Maywood Street. The property also lies adjacent to the east side of Seminole Avenue and Buena Vista Boulevard. The property is proposed for a maximum development of 275 dwelling units. The Comprehensive Plan suggests the property is appropriate for Corporate Office/Research & Development/Light Industrial use. Tax IDs 796-664-8288; 796-665-8442; 796-666-2905; 797-664-1385, 2466, 2858, 3054, 3350, 3545, 3741, 3937, 4063, 4428, 4917, 6321, 6573, 6712, 6751, 7006, 7834, 9236, 9403, 9962; 798-663-0798, 1579, 3887; 798-664-0022, 0747, 2543, 3217, and 6309.

Ms. Wilson introduced Case 24SN1266. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

Renae Eldred expressed concerns relative to getting out from Wonderview Drive onto Route 1.

Carl Schwendeman requested a sound barrier along Interstate 95 to block traffic noise, and he asked for the developer to prewire the houses and townhouses for electric car chargers.

Edgar Jett expressed numerous concerns with the case, including the blocking of Maywood, traffic, and lack of environmental impact studies.

Edgar Jett IV expressed concerns relative to blocking off Buena Vista Boulevard and asked the Board to defer a decision on the case.

There being no one else to speak to the issue, the public hearing was closed.

Jeff Geiger, representing the applicant, provided a rebuttal to comments made by the citizen speakers.

On motion of Mr. Ingle, seconded by Mr. Carroll, the Board approved Case 24SN1266, subject to the following conditions and imposed condition:

Proffered Conditions

The property owners and applicant in this rezoning case, pursuant to Section 15.2-2298 of the Code of Virginia (1950 as amended) and the Zoning Ordinance of Chesterfield County (the "Zoning Ordinance"), for themselves and their successors or assigns, proffer that the property under consideration (the "Property") will be developed according to the following proffers if, and only if, the rezoning request submitted herewith is granted with only those conditions agreed to by the owners and applicant. In the event this request is denied or approved with conditions not agreed to by the owners and applicant, the proffer shall immediately be null and void and of

no further force or effect.

These Proffered Conditions include three (3) Exhibits attached hereto:

Exhibit A: Conceptual Plan, Bellmeade Subdivision, prepared by Bowman, dated April 22, 2025, ("Conceptual Plan").

Exhibit B: Townhome Elevations dated April 22, 2024.

Exhibit C: Single Family Dwelling Elevations dated April 22, 2025.

1. Master Plan. The Textual Statement dated May 2, 2025, shall be considered the Master Plan. (P)

2. Conceptual Plan. The Property shall be developed in general conformance with the Conceptual Plan. The Conceptual Plan is conceptual in nature and may vary based on the final site plan depending on the final soil studies, RPA lines, road and alley design, lot locations, lot line locations, amenity locations, building locations, building footprints, parking area design and location, BMP design and location, access locations, VDOT requirements, pedestrian way design and location, other engineering reasons, and requirements to obtain permits and approvals from county departments and state departments and agencies. Any substantive changes that do not relate to the prior sentence shall be approved by the Planning Commission at the time of plans review. In the event of any conflict between information shown on the Conceptual Plan and these Proffered Conditions, these Proffered Conditions shall control. (P)

3. Density. Residential density shall be limited to a maximum of 275 total dwelling units. (P)

4. Utilities.

a. Public water and wastewater shall be used.

b. Appropriately sized waterlines will be constructed along Pinehurst Street and Wonderview Drive to support the development. Sizing of the proposed waterlines will be determined at site plan.

c. The developer shall submit to the Utilities Department for review and approval a wastewater system hydraulic analysis to verify downstream capacity, prior to or in conjunction with the first site or construction plan submittal. Any capacity related improvements necessary to support the wastewater demands of this development shall be the responsibility of the developer and shall be reflected on the site or construction plan. This analysis shall be updated to reflect final density. (U)

5. Amenities. The improvements listed below shall

be provided, unless otherwise approved at the time of plans review and approval. These amenities shall be available for use by all residents of the lots shown on the Conceptual Plan. The common areas may also be improved with one or more of the following: dog park, outdoor game area, benches, or other amenity improvements.

a. A green space in the location noted as "Central Green Amenity Area" on the Conceptual Plan improved as follows:

- i. With a minimum area of one and a half (1.5) acres,
- ii. With a minimum of two benches with hardscape below each bench (the square footage of this hardscape below each bench being a minimum of two times the square footage of the bench seating area),
- iii. With a portion improved with a dog park if a dog park is not provided within the "Amenity Area",
- iv. With a portion improved with a playground if a playground is not provided within the "Amenity Area",
- v. With landscaping identified on the landscape plan submitted by the owner at the time of plans review.
- vi. A pedestrian path through this amenity area.
- vii. An alternate design for the park may be submitted to the Planning Director for approval at the time of plans review.

b. A green space in the location noted as "Amenity Area" on the Conceptual Plan improved as follows:

- i. With a minimum area of a half (0.5) acre,
- ii. With a minimum of two benches with hardscape below each bench (the square footage of this hardscape below each bench being a minimum of two times the square footage of the bench seating area),
- iii. With a portion improved with a dog park if a dog park is not provided within the "Central Green Amenity Area",
- iv. With a portion improved with a playground if a playground is not provided within the "Central Green Amenity Area",
- v. With landscaping identified on the landscape plan submitted by the owner at the time of plans review.
- vi. A pedestrian path through this amenity area.
- vii. An alternate design for the park may be submitted to the Planning Director for approval at the time of plans review.

c. A walking path around the stormwater basin. (P)

6. Pedestrian Paths in Common Area. In all Common Areas, pedestrian paths shall be hard or gravel surfaced, unless otherwise approved at the time of plans review. In Resource Protection Areas, buffers

or other environmentally sensitive areas, pedestrian paths may be located in a meandering manner through the Resource Protection Areas in accordance with the Department of Environmental Quality's Riparian Buffers Modification and Mitigation Guidance Manual, with the final location, design and material to be approved by the Director of Environmental Engineering at the time of plans review and approval. (P)

7. Sidewalks Along Internal Roads. Sidewalks shall be provided on both sides of the internal Road labeled "Road A" on the Conceptual Plan. Sidewalks shall be provided on one side of all other internal roads, unless otherwise required at the time of plans review. The sidewalks shall be constructed within the right-of-way, unless otherwise approved by the Planning Department. (P)

8. CBU Lighting. Full cut-off, photocell-activated, minimum 70 CRI-rated LED luminaires shall illuminate areas within 20 feet of the cluster mailbox units (CBUs), exclusive of public roadways, with a minimum maintained illumination level of 0.5 foot-candles, as measured at grade, but this requirement may be modified to meet VDOT requirements. (Police)

9. Transportation Improvements. The following road improvements shall be completed by the Owner/Developer of the Property as specified below. Any modification to the design and lengths specified below shall be approved by the Transportation Department in accordance with VDOT approvals. If any of the road improvements identified below are provided by others, as determined by the Transportation Department, then the specific road improvement shall no longer be required.

a. Widening/improving Wonderview Drive, from Route 1 to the Property's easternmost vehicular access to Wonderview Drive, within the existing right-of-way to provide a minimum pavement width of twenty-two feet (22'), VDOT standard sidewalk along one side of the road, required ditch and two foot (2') wide gravel shoulder improvements, and overlaying the full width of the road with one and a half (1.5) inch surface course asphalt, with any modifications approved by the Transportation Department (approximately 950 feet). Improvement shall be provided with initial development unless otherwise approved by the Planning Commission at time of plans review.

b. Widening/improving Pinehurst Street, from Route 1 to approximately 150 feet east of the Ramona Avenue intersection, within the existing right-of-way to provide a minimum pavement width of twenty-four feet (24'), required ditch and two foot (2') wide gravel shoulder improvements, and overlaying the full width of the road with one and a half (1.5) inch surface course asphalt, with any modifications approved by the Transportation Department (approximately 900 feet). Improvement

shall be provided with initial development unless otherwise approved by the Planning Commission at time of plans review.

c. Construction of a separate right turn lane along north-bound lanes of Route 1 at the intersection of Route 1 and Pinehurst Street. Improvement shall be provided in conjunction with the Pinehurst Street widening improvements.

d. Emergency access road along Maywood Street from Seminole Road to Buena Vista Boulevard, unless otherwise determined by the Planning Commission at the time of Plans Review. The emergency access road will provide for twenty (20) feet of pavement and drainage ditches along both sides as needed. (T)

10. Internal Road Standards. The internal road segments shall have a minimum width of thirty-two feet (32') from face-of-curb to face-of-curb. (T)

11. Additional Parking. A minimum of 80 parking spaces shall be provided on-street or off-street or both to serve guests of residents in the townhome portion of the development. These spaces are in addition to the required parking standards for a townhome dwelling unit. (P)

12. Architecture.

a. Construction of townhome buildings shall be in general conformance with the architectural appearance shown on the illustrative elevations in Exhibit B or another architectural appearance approved by the Planning Director at the time of plans review. Subsequent to plans approval, the owner may also request approval of another architectural appearance by the Planning Director. The illustrative elevations are conceptual in nature and may vary in detail at the time of plans review. For example, the location of materials, types of material, use of stoops, use of covered porches, and other architectural detailing may change from building to building.

b. No more than 35% of the townhome dwelling units shall have a unit width of 16'. A 16' wide unit may not be located next to a 16' wide unit. The number of 16' wide units in a building may not exceed half of the number of units in a building. For clarity, the location of the 16' wide units shown on the Conceptual Plan are illustrative and their final location may vary from what is shown, in accordance with this proffered condition.

c. Construction of single family detached dwellings shall be in general conformance with the architectural appearance shown on the illustrative elevations in Exhibit C or another architectural appearance approved by the Planning Director at the time of plans review. Subsequent to plans approval, the owner may also request approval of another architectural appearance by the Planning Director. The illustrative elevations are conceptual in nature and may vary in detail at the time of plans

review. For example, the location of materials, types of material, use of stoops, use of covered porches, and other architectural detailing may change from building to building. (P)

13. Variation in Unit Front Elevations. For townhouse buildings, dwellings within the same building with the same front elevation may not be attached to each other. For single family detached dwellings, homes with the same front elevation may not be located next to across the street from each other. Variation in the front elevation may not be achieved by simply mirroring the façade, but may be accomplished by providing at least three (3) of the following architectural changes:

- a. Changing the location of roof type, roof line, front facing gable(s) and/or dormers.
 - b. Changing the style of roof type, roof line, front facing gable(s) and/or dormers.
 - c. Providing varied siding application using horizontal siding, shake siding or board and batten siding.
 - d. Providing varied color application.
 - e. Adding or removing a porch.
 - f. Adding or removing a covered stoop.
 - g. Adding projections such as bay/box windows, second floor balconies, or accent roofs.
 - h. Changing the unit width.
 - i. Changing the unit height.
 - j. Adding a third (3rd) enhanced feature to a garage door.
 - k. Any other element of architectural variation as approved by the Director of Planning.
- (P)

14. Lead Walks. A lead walk a minimum of a three (3) feet in width, and constructed with hardscaped materials (i.e. brushed concrete, stamped concrete, or pavers), shall be provided to the front entrance of each townhome dwelling unit, to connect to alleys, sidewalks or streets. (P)

15. Pedestrian Lighting. For all dwelling units with front load garages, a post light will be placed in the front yard or a carriage light shall be placed on the dwelling near the garage. (P)

16. Exterior Facades and Roofs.

- a. Roofing material for a sloped roof shall be standing seam metal or dimensional architectural shingles with a minimum of 30-year warranty, unless a different material satisfying the same minimum warranty is approved by the Planning Director at the time of plans review.
- b. Acceptable siding materials include brick, stone, masonry, fiber cement siding (such as HardiePlank, HardieShingle, and HardieTrim), engineered wood siding (such as LP SmartSide), or high-grade vinyl (a minimum of .044" nominal thickness as evidenced by manufacturer's printed literature). Dutch lap, plywood, and metal siding

are not permitted. Other materials may be used for parapets, cornices, surrounds, trim, architectural decorations, and design elements. (P)

17. Driveways. All private driveways shall be "hardscaped" (brushed concrete, stamped concrete, asphalt or pavers). (P)

18. Foundation Materials; On-Slab Foundation Treatments. The exposed portion of any foundation shall be of brick, brick veneer, synthetic stone, natural stone, stone veneer, other masonry material approved by the Planning Director, or combinations thereof. Synthetic or natural stucco foundations may be permitted for facades constructed of entirely stucco. Siding step down foundations shall be permitted on the side and rear elevations provided that a minimum twelve (12) inches of exposed brick or stone shall be required. A maximum of two (2) steps shall be permitted on any elevation. If the dwelling unit is constructed on a brick, brick veneer, synthetic stone, natural stone, stone veneer, other masonry material approved by the Planning Director, or combinations thereof shall be employed around the base of the dwelling unit a minimum twelve (12) inches above grade as to give the appearance of a foundation. (P)

19. Foundation Plantings. Foundation planting beds shall be required along the entire front façade of buildings excluding garages, stairs and walkways accessing porches and patios. (P)

20. Heating, Ventilation and Air Conditioning (HVAC) Units and Generators. HVAC units and generators installed as fixtures shall be screened initially from view of roads by landscaping or low maintenance material, as approved by the Planning Department. If an HVAC unit and/or generator is located between two driveways that access an Alley, the HVAC unit and/or generator need only be screened on the side that faces the Alley that provides access to the driveways. (P)

21. Direct Vent Fireplace. Direct vent gas fireplace boxes, which protrude beyond the exterior face of the townhome dwelling unit, are not permitted on front façades. All the exterior materials and finishes used to enclose the fireplace box must match the adjacent façade. (P)

22. Garage Door. Any front-loaded garage door shall use an upgraded garage door. An upgraded garage door is any door that meets one of the following two (2) requirements:

a. A minimum of two (2) enhanced features are provided on the garage door. Enhanced features shall include windows, raised panels, decorative panels, arches, ornamental hardware or other architectural features on the exterior that enhance the entry (i.e. decorative lintels, shed roof overhangs arches, columns, keystones, eyebrows, etc.)

b. The garage door provides an enhanced architectural style that relates to the architecture of the dwelling the garage serves. Enhanced architectural style shall mean the use of color, panels and/or windows to reflect an architectural style such as contemporary, modern, modern farmhouse, mediterranean, colonial, and tudor. The architectural style may be evidenced by manufacturer printed material. (P)

IMPOSED CONDITION:

1. Applicant cannot block access to 10510 Buena Vista Boulevard (P)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

D. 24SN1295 - Midlothian Quarry Expansion Rezoning - Clover Hill

In Clover Hill Magisterial District, Midlothian Quarry Expansion Rezoning is a request to rezone from Light Industrial (I-1) District to General Industrial (I-2) District plus conditional use for quarry use and amendment of zoning district map on 88.25 acres known as 3420 Warbro Road. The Comprehensive Plan suggests the property is appropriate for Industrial use. Tax ID 734-685-8451.

Ms. Wilson introduced Case 24SN1295. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Ms. Schneider, seconded by Mr. Holland, the Board approved Case 24SN1295, subject to the following conditions:

Proffered Conditions

1. Master Plan. The Textual Statement dated February 7, 2025, shall be considered the Master Plan. (P)

2. Uses. The Uses permitted on the Property shall be:

A. Any uses permitted in the Light Industrial (I-1) District.

B. Quarry operations, including the processing of raw materials located on the Property and overburden storage but excluding mining activities.

C. Storage yards.

D. Any accessory uses associated with any of the uses listed above, including equipment maintenance areas, shops and offices and labs. (P)

3. Fence. A fence affording adequate security with appropriate access gates shall be installed, relocated, or added to the perimeter or that portion of the perimeter of the Property where such activity requires fencing in accordance with the Virginia Division of Mineral Mining permit. Prior to the start of operation of that specific use or activity the fencing shall be installed. The fence may be extended or relocated based on the expansion or changes of the operations on the Property. This does not include areas where there is existing fence such as along Route 288. (P)

4. Location and Standards for Certain Uses.

A. Power driven or power producing equipment for quarry operations only shall be located a minimum of 600 feet from the Property lines adjacent to Warbro Road, Route 288, and Tax Identification Numbers 735-686-2193 and 734-687-0782, as depicted on Exhibit A. Except for selective clearing of underbrush or removal of dead or diseased trees this buffer shall remain in its natural state. (P)

5. Equipment. All equipment requiring backup warning devices shall be equipped with a directional backup alarm in accordance with Mine Safety and Health Administration (MSHA) and or Occupational Safety and Health Administration (OSHA), whichever applies. (P)

6. Buffers and Overburden Storage.

A. A one hundred (100) foot buffer shall be maintained along the western Property boundary adjacent to Route 288 and along the northern Property boundary adjacent to Tax Identification Numbers 735-686-2193 and 734-687-0782, as depicted on Exhibit A. Except for selective clearing of underbrush or removal of dead or diseased trees this buffer shall remain in its natural state.

B. A one-hundred-and-fifty (150) foot buffer shall be maintained along the eastern Property boundary adjacent to Warbro Road, as depicted on Exhibit A. With the exception of any new sewer, drainage, or other easement(s), the buffer shall comply with the requirements of the Zoning Ordinance, Sections 19-520 through 19-522 for fifty (50) foot buffers.

C. Sufficient topsoil for reclamation use shall be stockpiled. All berms and overburden storage may be used for reclamation. All slopes of the topsoil and/or overburden storage shall be seeded and planted when each terrace reaches its design limit. The storage, planting, and seeding shall be performed in accordance with the Virginia Division of Mineral Mining permit. (P)

7. Access.

A. Direct vehicular access from the Property to Warbro Road shall be limited to the existing right-of-way ("Access Road"), generally located towards the northern part of the Property and shown on Exhibit A, unless otherwise approved by the

Transportation Department. (T)

8. Public Utilities. Any new structure on the Property requiring potable water and wastewater service shall use the County water and wastewater systems. (U)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

E. 25SN1026 - Ball Second Dwelling - Mataoca

In Matoaca Magisterial District, Ball Second Dwelling is a request for conditional use to permit a second dwelling and amendment of zoning district map in an Agricultural (A) District known as 6130 Cedar Springs Road. The 36.31 acre property is developed with one single family dwelling and this request proposes one additional (second) dwelling. The Comprehensive Plan suggests the property is appropriate for Residential Agricultural use. Tax ID 740-672-8639.

Ms. Wilson introduced Case 25SN1026. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Mr. Carroll, seconded by Dr. Miller, the Board approved Case 25SN1026, subject to the following conditions:

Conditions

1. Occupancy. Occupancy of the second dwelling unit shall be limited to: the occupants of the principal dwelling unit, individuals related to them by blood, marriage, adoption, or guardianship, foster children, personal guests, and household employees.
(P)

2. Deed Restriction. For the purpose of providing record notice, prior to the issuance of a certificate of occupancy for the second dwelling unit, a deed restriction shall be recorded setting forth the limitation in Condition 1. The deed book and page number of such restriction and a copy of the restriction as recorded shall be submitted to the Planning Department. (P)

3. Second Dwelling Location, Size and Construction Limitations. The following limitations shall apply to the second dwelling on the Property:

a. The second dwelling shall be located on the Property as generally depicted in Exhibit A.

b. The second dwelling shall be no larger than 1,500 square feet.

c. A manufactured home shall not be permitted on this property. (P)

4. Water Connection. Should the property be legally subdivided in the future, the owner shall establish separate water connections to each dwelling unit, subject to the review and approval of the

Utilities Department. The owner shall be responsible for all costs to establish the new water connection, including payment of water connection fees in effect at the time service is initiated. (U)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

F. 25SN1029 - Aktig Second Dwelling - Midlothian

In Midlothian Magisterial District, Aktig Second Dwelling is a request for conditional use to permit a second dwelling and amendment of zoning district map in a Residential (R-40) District known as 3709 Old Gun Road West. The 3.79 acre property is currently developed with one single family dwelling and one additional (second) dwelling is proposed. The Comprehensive Plan suggests the property is appropriate for Low Density Residential use (Maximum of 1 dwelling per acre). Tax ID 738-724-6790.

Ms. Wilson introduced Case 25SN1029. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Dr. Miller, seconded by Ms. Schneider, the Board approved Case 25SN1029, subject to the following conditions:

Conditions

1. Occupancy. Occupancy of the second dwelling unit shall be limited to the occupants of the principal dwelling unit, individuals related to them by blood, marriage, adoption, or guardianship, foster children, personal guests, or household employees. (P)

2. Deed Restriction. For the purpose of providing record notice, prior to the issuance of a certificate of occupancy for the second dwelling unit, a deed restriction shall be recorded setting forth the limitation in Condition 1. The deed book and page number of this restriction and a copy of the restriction as recorded shall be submitted to the Planning Department. (P)

3. Second Dwelling Location, Size and Construction Limitations. The following limitations shall apply to the second dwelling on the Property:

a. The second dwelling shall be located on the Property as generally depicted in Exhibit A.

b. The second dwelling shall be no larger than 4,500 square feet.

c. A manufactured home shall not be permitted on this property. (P)

4. Water Connections. Should the property be

legally subdivided in the future, the owner shall establish separate water connections to each dwelling unit, subject to the review and approval of the Utilities Department. The owner shall be responsible for all costs to establish the new water connections, including the payment of connection fees in effect at the time service is initiated. (U)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

G. 25SN1056 - Field Family Day Care Home - Bermuda

In Bermuda Magisterial District, Field Family Day Care Home is a request for a conditional use to permit a family day care home plus conditional use planned development to permit exceptions to ordinance requirements and amendment to the zoning district map in the Agricultural (A) District on 1.03 acres known as 4010 Kelmarbi Road. Density will be controlled by zoning conditions or ordinance standards. The Comprehensive Plan suggests the property is appropriate for Suburban Residential II use (2 to 4 dwellings per acre). Tax ID 793-627-5887.

Ms. Wilson introduced Case 25SN1056. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Mr. Ingle, seconded by Dr. Miller, the Board approved Case 25SN1056, subject to the following conditions:

Conditions

1. Non-Transferable Ownership. This conditional use approval shall be granted to and for Jenni Field, exclusively, and shall not be transferable nor run with the land. (P)
2. Expansion of Use. With the exception of the proposed addition shown on Exhibit A, there shall be no exterior additions or alterations to the existing structure to accommodate this use. (P)
3. Signage. There shall be no signs permitted to identify this use. (P)
4. Number of Children. This conditional use approval shall be limited to providing care, protection and guidance to a maximum of twelve (12) children, other than the applicant's own children, at any one time. (P)
5. Hours of Operation. Hours and days of operation shall be limited to Monday through Friday from 7 a.m. to 5 p.m. There shall be no Saturday or Sunday operations of this use. (P)

6. Fenced Outdoor Play Areas. Any outdoor play area and/or recreational equipment utilized by the family day-care home shall be located in the side or rear yard of the property. Outdoor play and/or recreational equipment areas shall have perimeter fencing of at least four feet in height, installed around the equipment or play area. (P)

7. Employees. No more than two (2) employees shall be permitted to work on the premises at a time, other than family member employees who live on the premises. No overnight care shall be provided on the Property. (P)

8. Time Limitation. This conditional use approval shall be granted for a period not to exceed five (5) years from the date of approval. (P)

9. Setback Requirements. The dwelling (with attached garage) shall be setback no less than eleven (11) feet from the western, side property line as shown in Exhibit A. (P)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

H. 25SN1057 - Murphy Second Dwelling - Mataoca

In Mataoca Magisterial District, Murphy Second Dwelling is a request for conditional use to permit a second dwelling and amendment of zoning district map in an Agricultural (A) District known as 20011 Genito Road. The 5.07 acre property is currently developed with one single family dwelling and one additional (second) dwelling is proposed. The Comprehensive Plan suggests the property is appropriate for Rural Residential/Agricultural use. Tax ID 692-692-5303.

Ms. Wilson introduced Case 25SN1057. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Mr. Carroll, seconded by Dr. Miller, the Board approved Case 25SN1057, subject to the following conditions:

Conditions

1. Occupancy. Occupancy of the second dwelling unit shall be limited to the occupants of the principal dwelling unit, individuals related to them by blood, marriage, adoption, or guardianship, foster children, personal guests, or household employees. (P)

2. Deed Restriction. For the purpose of providing record notice, prior to the issuance of a certificate

of occupancy for the second dwelling unit, a deed restriction shall be recorded setting forth the limitation in Condition 1. The deed book and page number of this restriction and a copy of the restriction as recorded shall be submitted to the Planning Department. (P)

3. Second Dwelling Location, Size and Construction Limitations. The following limitations shall apply to the second dwelling on the Property:

a. The second dwelling shall be located on the Property as generally depicted in Exhibit A.

b. The second dwelling shall be no larger than 1,200 square feet.

c. A manufactured home shall not be permitted on this property. (P)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

I. 25SN1132 - Brandt Veterinary Services - Mataoca

In Matoaca Magisterial District, Brandt Veterinary Services is a request to amend prior zoning approval (Case 85SN0035) to permit a veterinary hospital and amendment of zoning district map in a Light Industrial (I-1) District on 1.65 acres known as 13861 Hull Street Road and 6909 Chital Drive. The Comprehensive Plan suggests the property is appropriate for Neighborhood Office use. Tax IDs 726-671-9678 and 727-671-0364.

Ms. Wilson introduced Case 25SN1132. She stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

Carl Schwendeman requested a sidewalk be constructed along Chital Drive.

There being no one else to speak to the issue, the public hearing was closed.

In response to Mr. Schwendeman's request for a sidewalk, Mr. Carroll explained that there is no new building being constructed. He then made a motion, seconded by Ms. Schneider, for the Board to approve Case 25SN1132, subject to the following conditions:

Conditions

1. Use. In addition to uses currently permitted on the Property, a veterinary hospital shall also be permitted. (P)

(Note: This condition is in addition to CONDITIONS FOR PARCEL D of Case 85SN0035, Textual Statement relative to uses.)

2. Hours of Operation. Hours of operation shall be Monday through Thursday from 7:30 AM to 7:00 PM, Friday from 7:30 AM to 6:00 PM, and Saturday from 9 AM to 12 PM. (P)

3. Boarding of Animals. No commercial boarding services shall be permitted. However, the overnight stay of animals who received veterinary care services is permitted. (P)

4. Outdoor Run. No outdoor run area shall be permitted. (P)

5. Outdoor walking Area. One (1) fenced outdoor potty area (subject to required setbacks) where the animals must be supervised while inside shall be permitted in the location as generally depicted on Exhibit A. The potty area shall be no more than 120 square feet in size. (P)

Staff note: All other conditions of Case 85SN0035 remain in effect.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

J. 24SN1030 - Beulah Road Cluster Lots Rezoning & Exceptions - Dale

In Dale Magisterial District, Beulah Road Cluster Lots is a request to rezone from Agricultural (A) to Residential (R-12) District with conditional use to permit neighborhood recreational facilities plus conditional use planned development to permit exceptions to ordinance requirements and amendment of zoning district map for property located in the southeast corner of Kingsland Road and Beulah Road. The 59.05 acre property is proposed for a maximum development of 166 dwelling units. The Comprehensive Plan suggests the property is appropriate for Corporate Office/Research & Development/Light Industrial and Suburban Residential II uses (2 to 4 dwellings per acre). Tax IDs 773-674-4923; 774-674-2542; 775-673-2747; 775-674-2127 and 5196.

Mr. Ryan Ramsey provided the Board with an overview of Case 24SN1030. He stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

Anne Miller, representing the applicant, declined to present additional information about the case at this time.

John Kazlo requested information about traffic and the number of additional cars that will result from the development.

Jerry Turner expressed concerns relative to the absence of sidewalks along Beulah Road going to the elementary school.

Carl Schwendeman asked for the developer to build sidewalks along both roads and a sidewalk or bike path along one of the major roads to lead to the Fall

Line Trail.

Ms. Miller provided responses to concerns raised by the speakers.

Discussion and questions ensued relative to the information provided during the presentation.

There being no one else to speak to the issue, the public hearing was closed.

On motion of Mr. Holland, seconded by Ms. Schneider, the Board approved Case 24SN1030, subject to the following conditions:

Proffered Conditions

1. Master Plan. The Master Plan for the Property shall consist of the following:

a. The Textual Statement last revised March 13, 2025.

b. Development of the Property shall generally conform to the Conceptual Plan, titled "Beulah Road Cluster Lots Conceptual Plan (Exhibit A)", prepared by Balzer and Associates last revised July 12, 2024, with respect to the general layout of roads, lots, common area, and open space. The layout on the Conceptual Plan is conceptual in nature and may vary based on the final subdivision/site plan depending on final engineering and environmental studies or as otherwise approved by the Planning Director, or assignee, at the time of plans review.

c. Conceptual Images (Exhibit B) last revised July 10, 2024. (P)

2. Utilities.

a. The public water and wastewater systems shall be used.

b. The on-site wastewater system shall be designed to accommodate the small drainage area at the southeast quad of Iron Bridge Road and Kingsland Road with a public wastewater line and terminal manhole, with a public easement, at the right-of-way line of Kingsland Road.

c. The onsite and offsite water improvements shall conceptually conform to "Beulah Road Cluster Lots Waterline Exhibit (Exhibit C)", prepared by Balzer and Associates last revised March 17, 2025. (U)

3. Density. The density shall not exceed 166 single family lots. (P)

4. Access. Direct vehicular access from the Property shall be limited to one (1) access to Beulah Road and one (1) access to Kingsland Road, as generally shown on the Conceptual Plan, with the

exact locations approved by the Transportation Department. (T)

5. Transportation Improvements. The following road improvements shall be completed, as determined by the Transportation Department. The Transportation Department shall approve the exact design, length, and/or other modifications to the road improvements:

a. Construction of additional pavement along Beulah Road at the approved accesses to provide left and right turn lanes. This improvement shall be completed in conjunction with the approved access to Beulah Road.

b. Construction of additional pavement along Kingsland Road at the approved access to provide a separate right turn lane. This improvement shall be completed in conjunction with the approved access to Kingsland Road.

c. Off-Site: Construction of additional pavement along the westbound lane of Kingsland Road at the Beulah Road intersection to provide a separate right turn lane with minimum storage length of 150 feet (taper length based on VDOT requirements) unless modifications approved by the Transportation Department at time of plans review. This improvement shall be completed in conjunction with the approved access to Kingsland Road or prior to recordation of a cumulative total of more than 100 residential lots, whichever occurs first.

d. Off-Site: Widening/improving the north side of Kingsland Road to a twelve (12) foot wide travel lane, measured from the centerline of the existing pavement, with an additional four (4) foot wide paved shoulder plus a four (4) foot wide unpaved shoulder and overlaying the full width of the road with one and one-half (1.5) inches of compacted bituminous asphalt concrete, with modifications approved by the Transportation Department, for the entire property frontage. This improvement shall be completed in conjunction with the approved access to Kingsland Road.

e. Construction of VDOT standard sidewalks along Beulah Road and Kingsland Road along the entire property frontage. This improvement shall be completed in conjunction with development along the corresponding road for the entire property frontage, unless a phasing plan is approved by the Transportation Department prior to construction plan approval.

f. Dedication to Chesterfield County, free and unrestricted, of any additional right-of-way (or easements) required for the improvements identified above. (T)

6. Dedication. Unless otherwise approved by the Transportation Department as part of a phasing plan, in conjunction with recordation of the initial

subdivision plat, prior to any final site plan approval, or within sixty (60) days from a written request by the Transportation Department, whichever occurs first, the following shall be dedicated, free and unrestricted, to and for the benefit of Chesterfield County.

a. Forty-five (45) feet of right-of-way along the north side of Kingsland Road, measured from the centerline of that part of the roadway immediately adjacent to the Property.

b. Forty-five (45) feet of right-of-way along the south side of Beulah Road, measured from the centerline of that part of the roadway immediately adjacent to the Property. (T)

7. Road Cash Proffers.

a. The applicant, sub-divider, or assignee(s) shall pay \$3,749 for each single-family unit to Chesterfield County for road improvements within the service district for the property (the "Cash Proffer Payments").

b. Each payment shall be made prior to the issuance of a certificate of occupancy for a dwelling unit unless state law modifies the timing of the payment. Should Chesterfield County impose impact fees at any time during the life of the development that are applicable to the property, the amount paid in cash proffers shall be in lieu of or credited toward, but not in addition to, any impact fees, in a manner determined by the county.

c. At the option of the Transportation Department, Cash Proffer Payments may be reduced for the cost of transportation improvements, other than those improvements identified in the Transportation Improvements Proffered Condition, provided by the applicant, sub-divider, or assignee(s), as determined by the Transportation Department. (B&M and T)

Subdivision Design Elements

8. Streetscape. Street trees shall be installed along both sides of internal public roads. Unless otherwise permitted during plan review, street trees shall be large deciduous trees generally spaced 40 feet on center, except where there is a conflict with utilities (above or underground), sightlines, and/or driveway areas. Trees shall either be installed within the right-of-way, or a maximum of 5 feet outside of the right-of-way. In a subdivision, if the trees are planted outside of the right-of-way, they shall be located in an easement granted to the homeowners' association. Tree species shall be those species designated for use as a street tree in the Chesterfield County Plant Materials List. (P)

9. Sidewalks. VDOT standard sidewalks shall generally be provided on both sides of public streets in public right-of-way. (P)

10. Driveways. All private driveways serving single-family residential uses shall be brushed concrete, stamped concrete, exposed aggregate concrete, decorative pavers, or asphalt. (P)
11. Front Walks. A minimum of three (3) foot wide concrete front walks shall be provided to each dwelling unit to connect drives, sidewalks, and/or streets. (P)
12. Front Foundation Planting Beds. Foundation planting is required along the entire front and corner side façade(s) of all dwelling units. Foundation planting beds shall be a minimum of four (4) feet wide from the unit foundation. Planting beds shall include medium shrubs spaced a maximum of four (4) feet apart. The plant materials used should visually soften the unit corners and complement the architecture of the home at their mature sizes. (P)
13. Architecture. Development of dwellings shall be consistent (incorporating similar, but not necessarily identical design elements, style and materials) with the conceptual elevations in Exhibit B or another architectural appearance approved by the Director of Planning at the time of plans review. (P)
14. Exterior Facades.
- a. Acceptable siding materials include brick, stone, masonry, fiber cement siding (such as HardiPlank, HardieShingle, and HardieTrim), or engineered wood siding (such as LP SmartSiding), premium quality vinyl siding with a minimum thickness of 0.044 inches or other comparable material as approved by the Planning Department at time of plans review. Plywood and metal siding are not permitted. Other materials may be used for trim, architectural decorations, or design elements provided they blend with the architecture of the dwelling unit. Where a dwelling borders more than one street, all street-facing facades shall be finished in the same materials.
 - b. The exposed portion of any foundation shall be brick or stone. If the dwelling unit is constructed on a slab, brick or stone shall be employed around the base of the front and sides of the dwelling unit a minimum of twenty-four (24) inches above grade as to give the appearance of a foundation.
 - c. Roofing material shall be standing seam metal, dimensional architectural shingles, or better with a minimum 30-year warranty. (P)
15. Dwelling Size. The minimum gross floor area for each new dwelling unit shall be 1,450 square feet. (P)
16. Elevation Repetition. The same dwelling unit elevations shall not be located adjacent to or

directly across from each other along the same road. This concept does not apply to units on different streets backing up to each other. Variation in the front elevation to address this restriction may not be achieved by simply mirroring the façade but may be accomplished by providing at least three (3) of the following architectural changes:

- a. Adding or removing a porch or covered entry or increasing or decreasing the length of the porch or entry.
- b. Varying the location and/or style of a front facing gable(s).
- c. Alternating the location of a garage.
- d. Providing different materials and/or siding types on at least 50% of the elevation.
- e. Providing a different roof type/roof line.
- f. Providing a different architectural style. (P)

17. Porches and Stoops. All dwelling units shall have either a covered front stoop or front porch. Front stoops and porches shall be constructed with continuous foundation walls or with masonry piers to match the foundation of the home. Extended front porches shall be a minimum of five (5) feet deep. Handrails and railings, when required by the building code, shall be finished painted wood, vinyl rails or metal rail systems with vertical pickets, sawn balusters, or other products of equal quality. Pickets shall be supported on top and bottom rails that span between columns. (P)

18. Garages.

a. Front loaded, and corner side loaded garages shall use an upgraded garage door. An upgraded garage door is any door with a minimum of three (3) enhanced features. Enhanced features shall include windows, raised panels, decorative panels, arches, ornamental hardware or other architectural features on the exterior that enhance the entry (i.e., decorative lintels, shed roof overhangs, arches, columns, keystones, eyebrows, etc.) Flat panel garage doors are prohibited.

b. Front loaded attached garages shall be permitted to extend as far forward from the front line of the main dwelling as the front line of the covered stoop or front porch provided that the rooflines of the stoop or porch and garage are contiguous. Where the rooflines are not contiguous, garages shall be permitted to project a maximum of six (6) feet forward of the front line of the main dwelling. (P)

19. Heating Ventilation and Air Conditioning (HVAC) Units and Whole House Generators. Units shall initially be screened from view of roads by landscaping or low maintenance material, as approved by the Planning Department. (P)

20. Fireplaces, Chimneys and Flues. If provided, the following shall be required.

a. Masonry fireplace chimney chases shall be constructed of brick or stone. The width and depth of chimneys shall be appropriately sized in portion to the size and height of the unit.

b. Direct vent gas fireplace boxes, which protrude beyond the exterior face of the unit, are not permitted on front facades. All the exterior materials and finishes used to enclose the fireplace box must match the adjacent façade. (P)

21. Lamp Posts. One lamp post shall be provided for each lot. The style and color of the lamp posts shall initially be installed to be consistent throughout the development. (P)

22. Buffers. The following buffers shall be provided in accordance with the General Provisions for Buffers as outlined in the Zoning Ordinance and as generally shown on Exhibit A:

a. A fifty (50) foot buffer shall be provided along the eastern property line, adjacent to Windermere Subdivision Section B and Tax ID 775-673-4331-00000, as well as along the east and west boundary lines adjacent to Tax ID 773-674-7843-00000.

b. A minimum forty (40) foot buffer, except where is a resource protection area, shall be provided along the western property line, adjacent to Tax ID 774-673-5560-00000.

c. A minimum thirty (30) foot buffer, except where there is a resource protection area, shall be provided along the southern property line adjacent to Tax ID 773-673-6390-00000, 773-673-8487-00000, 774-673-0083-00000, 774-673-1374-00000, 774-673-2869-00000 and 774-673-5560-00000.

d. All buffers shall be recorded within common area or open space. (P)

23. Focal Point/Recreation Area.

a. A minimum of 0.75-acre of common area/recreation area shall be provided throughout the development to provide focal points, as generally shown on Exhibit A. Part of the focal point(s) shall be landscaped and/or hardscaped, as permitted within the Gas Transmission Easement, and have benches or other amenities that accommodate and facilitate gatherings.

b. A field area and a community garden area, as generally shown on Exhibit A, shall be provided. Part of the field area may act as open, unstructured but maintained areas for recreational play.

c. A pedestrian trail system shall be provided throughout the development as generally shown on Exhibit A. The exact design, surfacing and location of the trail system shall be reviewed and approved with plans review. The pedestrian connection to Beulah Elementary School, as generally shown on Exhibit A, shall be provided and be constructed of an all-weather surface (where permitted). The exact design and location of this amenity shall be reviewed and approved during plans review.

d. Other amenities, such as, but not limited to, pavilion, benches, dog park and fire pit(s), shall be permitted within the development.

e. The amenities described above shall be developed concurrent with the phase of development that the amenities are intended to serve. The exact design, material, location and size of all amenities, including the pedestrian trail system, shall be reviewed and approved during plans review.

f. The Department of Environmental Engineering shall review and approve the exact location and surfacing of any trails proposed within the Resource Protection Area (RPA) as well as enhanced landscaping around the SWM/BMP. (P)

24. Airport Impact. Future homeowners of the dwelling units within the Property shall have notice of the location of Chesterfield County Airport and its proximity to the Property. Any subdivision plat and/or location plan used in any homeowner's association documents associated with the Property shall note the location of Chesterfield County Airport and its proximity to the Property. (P)

25. Stormwater. The maximum post-development discharge rate for the 100-year storm shall be based on the maximum capacity of the existing facilities downstream and shall not increase the recorded and /or established 100-year backwater and /or floodplain. On-Site detention of the post-development 100-year discharge rate to below the pre-development 100-year discharge rate may be provided to satisfy this requirement. (EE)

26. Road Width. The internal roads for the subdivision shall have a minimum width of thirty-two feet (32) from face-of-curb to face-of-curb. (P)

27. Perimeter Screening. A privacy fence with a minimum height of six (6) feet, constructed of either vinyl or pressure-treated wood, shall be installed generally along the southern and western boundaries of the Property, specifically adjacent to the properties identified by GPINs 773-673-8487, 774-673-0083, 774-673-1374, 774-673-2869, and 774-673-5560. The installation of said fence shall exclude any portion of the boundary located within a designated Resource Protection Area (RPA). (P)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

K. 24SN1313 - Iron Bridge Center - Bermuda

In Bermuda Magisterial District, Iron Bridge Center is a request to amend zoning approval (Case 04SN0271) relative to proffers and amendment of zoning district map in the Community Business (C-3) District on 20.47 acres known as 12420 Iron Bridge Road. The Comprehensive Plan suggests the property is appropriate for Community Mixed Use. Tax IDs 782-651-3577, 4567, 5761, 7069, 9075; 782-652-0316, 5011, 9213; and 783-652-1315.

Mr. Rich Saunders provided the Board with an overview of Case 24SN1313. He stated the Planning Commission and staff recommended approval, subject to the conditions in the staff report.

Mr. Ingle called for public comment.

Jeff Geiger, representing the applicant, presented additional information about the case.

Discussion and questions ensued relative to the information provided during the presentation.

Carl Schwendeman asked for the developer to build a sidewalk along one side of the internal street and toward the Fall Line Trail.

There being no one else to speak to the issue, the public hearing was closed.

Mr. Geiger provided a response to concerns raised by the citizen speaker.

On motion of Mr. Ingle, seconded by Dr. Miller, the Board approved Case 24SN1313, subject to the following conditions:

Proffered Conditions

The property owners and applicant in this rezoning case, pursuant to Section 15.2-2298 of the Code of Virginia (1950 as amended) and the Zoning Ordinance of Chesterfield County, for themselves and their successors or assigns, proffer that the property under consideration (the "Property") will be developed according to the following proffers if, and only if, the rezoning request submitted herewith is granted with only those conditions agreed to by the owners and applicant. In the event this request is denied or approved with conditions not agreed to by the owners and applicant, the proffers shall immediately be null and void and of no further force or effect.

Exhibit A: Parcel Exhibit, Commercial Development Chesterfield County VA, dated April 4, 2025, prepared by Kimley-Horn (the "Conceptual Plan")

Exhibit B: Retail Elevations dated April 28, 2025, (the "Retail Elevations"). Contemporary elevations noted with the label "Contemporary." Neo-traditional elevations noted with the label "Neo-Traditional."

Exhibit C: Self Storage elevation, prepared by RAPID last revised April 1, 2025, (the "SS Elevations").

Amendments to Proffered Conditions Accepted with Case No. 04SN0271

The Applicant hereby deletes Condition 2 of Case No. 04SN0271 and replaces it with the following:

1. Conceptual Plan. The Property shall be developed in general conformance with the Conceptual Plan, subject to the requirements and adjustments permitted in the Proffered Conditions. The Conceptual Plan is conceptual in nature and may vary based on the final site plan depending on the final grading and soil studies, Resource Protection Area lines, entrance location(s), road design, building area dimensions, parking area design and location, perimeter security fencing, guard and gate locations, division line locations for new parcels within the project, utility locations, VDOT requirements, BMP design and location, easements, approval requirements for state and federal agencies, and other design or engineering reasons. Any substantive changes that do not relate to the prior sentence shall be approved by the Planning Commission at the time of plans review. The Property may be subdivided into individual parcels in accordance with the Zoning Ordinance and the County's Subdivision Ordinance. In the event of any conflict between the information shown on the Conceptual Plan and these Proffered Conditions, these Proffered Conditions shall control. (P)

The Applicant hereby deletes Condition 3 of Case No. 04SN0271 and replaces it with the following:

2. Stormwater.

a. Super Silt Fence, or an alternative as approved by the Department of Environmental Engineering, shall be provided as a perimeter control along the Property's frontage on Iron Bridge Road in the locations along that frontage where standard silt fence would have been required.

b. Sediment traps or sediment basins located on the portion of the Property that drains to the pond owned by the Chester Fishing Club ("Pond") shall be sized at least 25% larger than the minimum Virginia Stormwater Management Handbook's standard shall be provided.

c. The maximum post-development discharge rate for the 100-year storm shall be based on the maximum capacity of the existing facilities downstream, and shall not increase the recorded and /or established 100-year backwater and /or floodplain. On-Site detention of the post-development 100-year discharge rate to below the pre-development 100-year discharge rate may be provided to satisfy this requirement. (EE)

The Applicant hereby deletes Condition 4 of Case No. 04SN0271 and replaces it with the following:

3. Uses. Uses shall be limited to those uses permitted by-right, with restrictions in the C-3 District except the following uses shall not be permitted:

- a. Antique shop
- b. Club or lodge
- c. Cocktail lounges and nightclubs
- d. Columbarium
- e. Crematorium
- f. Flea market
- g. Funeral home
- h. Mortuary
- i. Pool halls
- j. Second hand shops
- k. Skating rinks
- l. Video arcades
- m. Bowling alley
- n. Multiple family dwellings
- o. Townhomes
- p. Stacked unit dwellings
- q. Single family detached dwellings
- r. More than one convenience store with automobile service station (manned or unmanned)
- s. Automobile rental
- t. Automobile sales (P)

The Applicant hereby deletes Condition 5 of Case No. 04SN0271 and replaces it with the following:

4. Buffer. A fifty (50) foot buffer ("Buffer") shall be maintained adjacent to the neighboring parcels identified on the County's Tax Map as GPINs 783-652-3521 and 783-651-2283. This Buffer shall also be provided in the portion of the Property identified as O-5 ("O-5") on the Conceptual Plan along W. Hundred Road only if O-5 is developed with a building taller than 2 stores. At a minimum, this buffer shall be planted to 1.5 time Perimeter Landscape C, with credit for existing vegetation. Additional evergreen trees shall be provided within this buffer at a height of three (3) to four (4) feet at time of planting and planted at an average rate of one per ten (10) feet within this buffer, unless an alternative planting standard is approved at the time of plans review and approval. (P)

The Applicant hereby deletes Condition 6 of Case No. 04SN0271 and replaces it with the following:

5. Tenant Size. With the exception of a self-storage use and a hotel use, no single tenant space shall exceed 50,000 gross square feet in area (measured on the basis on inside wall to inside wall). (P)

The Applicant hereby deletes Condition 7 of Case No. 04SN0271 and replaces it with the following:

6. Design Guidelines. The development shall comply with the requirements of the Zoning

Ordinance's Chester Special Design District, Required Conditions Chester Fringe, as it pertains to the following:

- a. Lighting.
- b. Streetlights.

In addition, Pole-mounted, full cut-off, photocell-activated, minimum 70 CRI rated LED luminaires shall illuminate parking areas and parking lot sidewalks with a minimum maintained illumination level of 0.7 foot-candles, as measured at grade. This requirement shall not supersede VDOT illumination limits at the right-of-way. (P)

The Applicant hereby deletes Condition 8 of Case No. 04SN0271 and replaces it with the following:

7. Building Heights. With the exception of a self-storage use and a hotel use, building heights shall not exceed one and a half stories. (P)

The Applicant hereby deletes Condition 9 of Case No. 04SN0271 and replaces it with the following:

8. Architecture/Materials.

a. A building with a self-storage use constructed on the Property shall be developed with an architectural appearance generally consistent with the picture(s) shown on the SS Elevations. Further, this building shall avoid the use of undifferentiated surfaces by including at least two of the following design elements:

- i. change in building height;
- ii. building step-backs or recesses;
- iii. fenestration;
- iv. change in building material, pattern, texture, or color;
- v. use of accent materials; or
- vi. any other element approved by the Planning Director at plans review.

Any substantial modifications or deviations to the general architectural appearance shown on the SS Elevations shall be approved by the Planning Commission in conjunction with plans review.

b. Any other building constructed on the Property shall be developed with an architectural appearance generally consistent with the two alternative architectural styles (contemporary or neo-traditional) shown in the Retail Elevations. The owner shall pick one of the these two architectural styles at the time of plans review. If the neo-traditional architectural style is chosen, then the picture(s) shown on Retail Elevations for the neo-traditional architectural style shall be enhanced with at least two of the following design elements from neo-traditional architecture:

- i. roof with at least two gables and/or parapets;
- ii. tower, cupola, or weather vane;
- iii. ornamental columns or dentils;

- iv. awning;
- v. shutters;
- vi. windows with muntins;
- vii. ornamental brackets;
- viii. or one or more other elements

approved by the Planning Director at the time of plans review.

Any substantial modifications or deviations to the general architectural appearance shown on the Retail Elevations (e.g. a desire to use a different architectural style than contemporary or neo-traditional) shall be approved by the Planning Commission in conjunction with plans review.

c. For all buildings, owners and tenants will be permitted to include prototypical or corporate buildings and identification architectural elements in the design of their building provided that these elements do not qualify as signage. If these elements are considered to be signage then the elements shall be inclusive of sign area calculations for the entire project.

d. Acceptable siding materials include brick, brick veneer, stone, stone veneer, cultured stone, other masonry materials, fiber cement siding (such as HardiPlank, HardieShingle, and HardieTrim), or engineered wood siding (such as LP SmartSide). Dutch lap, plywood, vinyl and metal siding are not permitted. Other materials may be used for parapets, cornices, surrounds, trim, awnings, architectural decorations, and design elements. Roofing material for a sloped roof shall be standing seam metal, dimensional architectural shingles with a minimum of 30-year warranty, unless a different material satisfying the same minimum warranty is approved by the Planning Director at the time of plans review. (P)

The Applicant hereby deletes Condition 12 of Case No. 04SN0271 and replaces it with the following:

9. Vehicular Access.

a. Direct access from the Property to Route 10 shall be limited to two (2) accesses, and direct access from the Property to Branders Bridge Road shall be limited to one (1) full access, as the location of these access points are generally shown on the Conceptual Layout. The westernmost Route 10 access shall be limited to right-in/right-out access and the easternmost Route 10 access shall prohibit the left-out movement. The final location and design of these accesses shall be approved by the Transportation Department, in accordance with VDOT approvals.

b. There shall be no direct access to/from the Property to West Hundred Road. (T)

The Applicant hereby deletes Condition 13 of Case No. 04SN0271 and replaces it with the following:

10. Road Improvements. The following road

improvements shall be completed by the Owner/Developer of the Property as specified below. Any modification to the design and lengths specified below shall be approved by the Transportation Department in accordance with VDOT approvals. If any of the road improvements identified below are provided by others, as determined by the Transportation Department, then the specific road improvement shall no longer be required. Unless requested by the owner/developer and approved by the Transportation Department at time of plans review, the phasing of each road improvement shall be provided as specified below.

a. Iron Bridge Road (Route 10)

i. Construction of additional lane of pavement along the eastbound lanes of Route 10 for the entire Property frontage. Improvement shall be completed prior to the issuance of any certificate of occupancy on the Property.

ii. Construction of additional pavement along the eastbound lanes of Route 10 at each approved access to provide a separate right-turn lane. Improvement shall be provided in conjunction with construction of the associated vehicular access.

iii. Construction of a directional crossover on Route 10 in the general location illustrated on the Conceptual Plan with construction of adequate left turn lanes in both directions. This directional crossover shall prohibit the left-out movement from the Property at this access location. The exact location of this directional crossover shall be approved by the Transportation Department, in accordance with VDOT approvals.

iv. Construction of additional pavement along the westbound lanes of Route 10 at the Branders Bridge Road intersection to provide a left turn lane with 225 feet of storage and an aggregate (of both storage and taper lengths) length of 425. This improvement shall be completed prior to the issuance of any certificate of occupancy on the Property.

b. Branders Bridge Road

i. Construction of additional pavement along Branders Bridge Road at its intersection with Route 10 to provide a 4-lane typical section: 3 northbound lanes (2 left turn lanes and 1 right turn lane) and 1 southbound lane. These improvements shall be completed prior to issuance of any certificate of occupancy on the Property.

ii. Construction of additional pavement along Branders Bridge Road at the approved full access to provide left and right turn lanes. If designed with left and right turn lanes, then the project's entrance onto Branders Bridge Road shall provide a 3-lane typical section: 2 egress lanes and 1 ingress lane. Improvement to be provided in conjunction with the Branders Bridge Road access.

c. Existing Route 10/Branders Bridge Road Traffic Signal

i. If improvements at the intersection of Route 10/Branders Bridge Road require modifications to the traffic signal at the Route 10/Branders Bridge Road intersection, then owner/developer shall be responsible for the full cost of these modifications and the modification shall be provided in conjunction with road improvement(s) requiring the traffic signal modifications.

d. West Hundred Road

i. Construction of additional pavement along West Hundred Road at its intersection with Branders Bridge Road to provide a 3-lane typical section: 2 westbound lanes and 1 eastbound lane.

ii. Improvements shall be completed in conjunction with development adjacent to the West Hundred Road frontage, as determined by the Transportation Department.

e. Additional Right of Way

i. Dedication to the County or VDOT, as applicable, free and unrestricted, of any additional right-of-way or easements required for the improvements identified above. In the event the Owner/Developer is unable to acquire any "off-site" right-of-way that is necessary for the road improvements described in this proffered condition, the Owner/Developer may request, in writing, that the County acquire such right-of-way as a public road improvement. All costs associated with the acquisition of the right-of-way shall be approved and borne by the Owner/Developer. In the event the County chooses not to assist the Owner/Developer in acquisition of the "off-site" right-of-way, the Owner/Developer shall be relieved of the obligation to acquire the "off-site" right-of-way and shall provide the road improvements within available right-of-way as determined by the Transportation Department and the road improvements provided within available right of way shall be deemed to satisfy the applicable requirement in this proffered condition. (T)

The Applicant hereby deletes Condition 15 of Case No. 04SN0271 and replaces it with the following:

11. Master Plan. The Textual Statement dated July 6, 2004, and revised February 14, 2005, and as amended by the Textual Statement dated January 31, 2025, shall be considered the Master Plan. (P)

The Applicant hereby deletes Condition 14 of Case No. 04SN0271 and replaces it with the following:

12. Additional Development Requirements.

a. HVAC Screening. All rooftop mounted equipment shall be screen from view from adjacent public rights of way and from the neighboring parcels identified on the County's Tax Map as GPINs 783-632-3521 and 783-651-2283.

b. Foundation Plantings. Building

foundation plantings shall not have natural, mature growth habits that exceed three (3) feet in height, notwithstanding anything to the contrary in the Zoning Ordinance.

c. Hotel Use. The following development requirements shall apply to any hotel use:

i. An electronic pushbutton keypad shall be installed at the hotel's main customer entrance for emergency police access. Owner shall establish and provide a unique, CCPD-only access code to the Chesterfield County Emergency Communications Center (ECC) Operations Manager prior to the certificate of occupancy being issued. Prior to the certificate of occupancy being issued, owner shall contact the Chesterfield County Emergency Communications Center (ECC) Operations Manager to receive a four-digit, police-only, emergency keypad code, unless another form of access is approved by the Police Department.

ii. The applicant/owner/operator shall be responsible for the installation, operation, and maintenance of a functioning security camera and video system of professional grade and quality, and rated for the surveillance of interior and exterior hotel (or equivalent) operations. This security system shall, at a minimum, include exterior surveillance camera(s) to monitor all vehicular property entrance(s), and interior surveillance camera(s) to monitor the lobby/reception area. Network video recorder (NVR)/digital video recorder (DVR) shall be capable of exporting video footage in proprietary and non-proprietary formats, unless otherwise approved by Police Department.

iii. The owner of the business operating the security camera(s) shall link exterior video surveillance cameras with the Chesterfield County Police Department's (CCPD) Analytic and Strategic Operations Center (ASOC) upon the terms in effect at the time of rezoning approval, unless otherwise agreed to by the owner of the business and CCPD.

iv. A labeled PDF of the hotel floor plans shall be provided to the Chesterfield County Emergency Communications Center (ECC) Operations Manager prior to the certificate of occupancy being issued.

d. Self-Storage Use. The following development requirements shall apply to any self-storage use:

i. Only one (1) self-storage use is permitted and the self-storage use must be located in the portion of the Property generally shown by O-5, but the boundary lines may be adjusted.

ii. An electronic pushbutton keypad shall be installed at the facility's gated entrance and at the main building entrance for emergency police access. Prior to the Certificate of Occupancy being issued, owner shall contact the Chesterfield County Emergency Communications (ECC) Operations Manager to receive a four-digit, police-only, emergency keypad code, unless another form of access is approved by the Police Department.

iii. The applicant/owner/operator shall be responsible for the installation, operation, and maintenance of a functioning security camera and video system of professional grade and quality, and rated for the surveillance of exterior self-storage (or equivalent) operations. This security system shall, at a minimum, include exterior surveillance camera(s) to monitor all vehicular property and customer building entrance(s). Network video recorder (NVR)/Digital Video Recorder (DVR) shall be capable of exporting video footage in proprietary and non-proprietary formats, unless otherwise approved by Police Department. (P)

The Applicant hereby deletes Condition 10 of Case No. 04SN0271 and replaces it with the following:

13. A sidewalk shall be constructed along the Property frontage along the east side of Branders Bridge Road. A sidewalk shall be constructed along the Property frontage along the southside of Iron Bridge Road (Route 10), but not if a shared use path is required along the Property's frontage on Route 10 under the Bikeways section of the Zoning Ordinance. A sidewalk shall be constructed along the north side of West Hundred Road for the distance illustrated on the Conceptual Plan. (T)

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

18. Public Hearings

A. To Consider a Siting Agreement with Hermon Energy

Deputy County Administrator Jesse Smith introduced the public hearing.

Mr. Ingle called for public comment.

Renae Eldred expressed concerns relative to an inspection requirement to check for leaks and compliance.

There being no one else to speak to the issue, the public hearing was closed.

Discussion and questions ensued relative to the concern raised by the citizen speaker.

On motion of Dr. Miller, seconded by Ms. Scheider, the Board approved an Energy Storage Facility Siting Agreement with Hermon Energy Center, LLC.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

B. To Consider the Lease of County Property at 3401 Courthouse Road

Real Property Manager Lynn Snow introduced the public hearing.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Mr. Holland, seconded by Mr. Carroll, the Board approved the lease of county property at 3401 Courthouse Road with New Cingular Wireless PCS, LLC (AT&T).

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

- C. To Consider a Lease Amendment for County Property at 11730 River Road

Ms. Snow introduced the public hearing.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Mr. Carroll, seconded by Ms. Schneider, the Board approved a lease amendment for county property at 11730 River Road with New Cingular Wireless PCS, LLC (AT&T) at the Union Branch Tower.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

- D. To Consider the Quitclaim of a Portion of County Right-Of-Way Adjacent to Warbro Road

Ms. Snow introduced the public hearing.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Dr. Miller, seconded by Ms. Schneider, the Board authorized the Chairman of the Board of Supervisors and the County Administrator to execute a quitclaim deed to quitclaim a portion of right-of-way adjacent to Warbro Road.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

- E. To Consider the Conveyance of an Underground Easement to Southside Electric Cooperative at Lake Chesdin Park

Ms. Snow introduced the public hearing.

Mr. Ingle called for public comment.

There being no one to speak to the issue, the public hearing was closed.

On motion of Mr. Carroll, seconded by Dr. Miller, the Board authorized the Chairman of the Board of

Supervisors and the County Administrator to execute an agreement with Southside Electric Cooperative for an underground easement at Lake Chesdin Park.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

19. Fifteen-Minute Citizen Comment Period on Unscheduled Matters

There were no speakers on unscheduled matters at this time.

20. Adjournment

A. Adjournment and Notice of Next Scheduled Meeting of the Board of Supervisors

On motion of Mr. Holland, seconded by Dr. Miller, the Board adjourned at 9:11 p.m. to its regularly scheduled Board of Supervisors meeting on July 23, 2025, at 2 p.m. in Room 502 of the County Administration Building.

Ayes: Ingle, Miller, Schneider, Holland and Carroll.
Nays: None.

Joseph P. Casey
County Administrator

Jim A. Ingle
Chairman

Citizen Comments Received Through the Comment Portal
June 25, 2025, Board of Supervisors Meeting

Comment Type	Comment	Name	District
24SN1190 - Haley Ford Body Shop Parking Lot	Can they ask them to build a new section of 5 foot wide sidewalk along Route 60 set back 10 feet from the edge of Route 60's pavement? And a sidewalk along Johnston Willis Drive. It would be cheaper to build the sidewalk now when they rip up the whole site and dig up the place than to put it in later on and have to dig up everything a second time.	Carl Schwendeman	Midlothian
23SN0132 - Whitten Brothers Site Expansion	They need to ask them to build a 5 foot wide sidewalk set back 8 to 10 feet from Route 60 and a sidewalk along Johnston Willis Drive. In that it would be a lot cheaper to have them build a new sidewalk when they dig up this place than later on.	Carl Schwendeman	Midlothian
25SN1132 - Brandt Veterinary Services	Could they ask them to build a new section of 5 foot wide sidewalk along Chital Drive?	Carl Schwendeman	Midlothian
24SN1313 - Iron Bridge Center	Could they ask them to build a 8 foot wide sidewalk along the internal road with a outlet leading to the back end of the development. There is a high possibility that the land this project is on might have a section of former Tidewater and Western Railroad bed in the middle of part of it next to the road that is half way in the middle of it. Or they could do a study to locate any former railroad bed on it and turn that into a sidewalk or trail.	Carl Schwendeman	Midlothian